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JAN 10 2015

Federal Maritime Commission
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BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 14 -10

ECONOCARIBE CONSOLIDATORS, INC.

COMPLAINANT

V.

AMOY INTERNATIONAL, LLC.

RESPONDENT

OPPOSITION TO MOTION FOR PARTIAL SUMMARY JUDGMENT

DECLARATION OF MELISSA CHEN

I, Melissa Chen, declare as follows:

1. I am over 18 years of age and competent to make this affidavit.
2. I am the owner of Amoy International, L.L.C. ("Amoy") and its Custodian of Records. If called as a witness, I could and would competently testify to the following of my own personal knowledge in a court of law.

Original

3. On May 17, 2013, Amoy received an email from a John Chen, claiming to be from Kumquat Tree, Inc. He stated that he saw Amoy's "info" on its website and needed to ship some containers from Oakland to Xingang. He asked for a quote for 40' and 40' HQ and stated that the commodity was auto parts. Krystal Lee, also known as Krystal Lazcano, ("Krystal"), an Amoy employee, responded with a quote, offering a choice between two carriers, Maersk and NYK. See Exhibit "1".

4. On May 20, 2013, Amoy contracted with Econocaribe to ship four (4) containers, which were described as "Auto Parts" on an Econocaribe bill of lading issued to transport the cargo from Oakland, California to Xingang, China. See Exhibit "2". Krystal made the booking. The four containers were shipped on board the CMA CGN Vivaldi on May 29, 2013. See Exhibit "3", Maersk bill of lading. The Maersk bill of lading described the cargo as "Auto Parts." Based on the information that it received, Amoy believed that the cargo was "auto parts." See Exhibits "4", "5", "6" and "32". Amoy did not know when it declared the cargo as auto parts that it was baled tires.

5. Prior to shipment, John Chen sent Amoy a packing list and a commercial

invoice, showing the cargo to be "Auto Parts." See Exhibits "4" and "5". He also completed Amoy's Shippers Letter of Instruction, which also shows the cargo as "Auto Parts," see Exhibit "6", and sent a photograph of the cargo. See Exhibit "32".

6. On June 17, 2013, I sent an email to Ariel Martinez ("Ariel") of Econocaribe, informing him that Amoy was having difficulty locating the shipper and believed that there was a problem with the shipment because Amoy was unable to locate the consignee. I asked that this message be forwarded to his manager because Amoy needed assistance on the issue since the containers were arriving in Tianjin that day. See Exhibit "7".

7. Later that day, I followed up with another email to Econocaribe stating that Amoy had lost contact with the supplier/buyer for the 4 containers and that Amoy had just found out that the commodities were not auto parts, but "recycle" items, meaning cargo that was likely prohibited from entry into China. I said that I was still trying to get more information from the vendor about the items. I also wrote **"In this case, can we request if "MSK [Maersk] to allow us some extra time at port of destination or abandon the cargo or return to US seller or**

resell to other ports in China? Please kindly advise." [Emphasis added.] See Exhibit "8". I was asking Econocaribe and Maersk, through Econocaribe, for their assistance and advice in addressing the problem.

8. On June 20, 2013, Krystal sent an email to Ariel asking him to "confirm all charges for this shipment and carrier confirmation for this shipment." Ariel replied, "All charges for the OFR to Xingang? Or the return back to the US . . ." Krystal immediately replied "**Yes, please include all fees including return to US . . .**" Ariel replied "Noted, I've been working on this with carrier. We are waiting for them to confirm all the charges, I will let you know once they revert the details." [Emphasis added.] See Exhibit "9". These emails show my preference to return the cargo back to the United States and I was asking for the fees involved with the return. It wasn't until May 12, 2014, almost a year later that I received a response from Econocaribe informing me of what the fees were. However, the fees were lumped with other costs. See Exhibit "27".

9. The next day, on June 21, 2013, Krystal again emailed Ariel "Please advise if carrier has updated you with the fees?" It was followed shortly by an email that I sent to John Kamada of Econocaribe ("Kamada"). That email stated

“the vessel arrived to port few days now, and I understand you are still waiting to hear from MSK **but we are running out of time.** This is abandoned shipment by shipper/consignee. We can as well abandon it, but **we want to keep everything in the good term and to solve this matter instead of dropping it.** If you need me to issue abandon letter to MSK to push them for faster response please let me know. **We sincerely just want to solve this matter the quickest possible.”**

[Emphasis added.] See Exhibit “10”. The email activity from Amoy to Econocaribe again showed my commitment to address the cargo problem as soon as possible and not to ignore it. Yet, I wasn’t getting a response to my requests. This email also shows my preference not to abandon the cargo.

10. Two days later, on June 23, 2013, Kamada replied to my June 21, 2013 email stating that “We are still waiting on Maersk but **I would suggest you prepare the abandon letter and have it ready to go.**” [Emphasis added.] A week later, on July 1, 2013, not having heard from Kamada, I sent him another email, stating that “the process here is taking really long time and we all don’t know what is happening and what MSK is going to do with the containers. **There is no word from anyone on how they want to resolve this issue.** Meanwhile, please let me know if you can still amend original consignee on the BL with

MSK?” [Emphasis added.] Later on July 1, 2013, I exchanged the following emails with Kamada. Kamada: “Given the circumstances, we can probably still revise the Maersk B/L. Do you think that you might find another buyer.” I replied “no, **we did not find buyer because of the commodity is not permitted to go into China.** I wanted to list the buyer on BL of what shipper gave us originally. Please let me know.” Kamada answered: “We will call Maersk tomorrow and push them for a response. These types of things usually take a while but I will make sure we expedite it. Hope to have some answers shortly.” I replied “Ok, we want to know what MSK would do in this case.” See Exhibit “11”. After two weeks, there was still no response from Maersk or Econocaribe on how to address the problem, except for Kamada’s suggestion to prepare an abandonment letter. He did not reply to my question of whether Econocaribe could amend the original consignees on the BL. Although he said that he would call Maersk and ask for a response, I didn’t receive any. These email exchanges show that, even though I expressed a preference not to abandon the cargo, Kamada nevertheless recommended it. I preferred to return the cargo because I wanted to solve the problem “the quickest possible.”

11. A week later, on July 9, 2013, which was about three weeks after I first

began communicating with Econocaribe, I received an email from Ariel informing me of an email response that Econocaribe received from Maersk China. In that email, Ariel stated that Maersk contacted the consignee who stated that the shipment was not their shipment nor their booking. Ariel advised that the shipper should be informed and that a new consignee should be found. Ariel also informed me that the detention costs were 18360 RMB, which is about \$3,000USD at the rate of 6.3 RMB to the dollar. However, he failed to inform me about the cost of returning the 4 containers, which I had been requesting. Ariel asked me for my comments. Within the hour, I replied stating "why is MSK took so long to take this step. We will not be responsible for the storages for these containers. **I have started requesting the assistance since June 17th.** Please advise." [Emphasis added.] Kamada replied stating "**Maersk will probably be able to absorb some of these changes.** Unfortunately, **abandoning the cargo does not relieve the shipper of the potential charges.** At this point, the storage charges are not the biggest issue. **Since no other consignee can be located, you have the option to return the cargo back to the US or have it sold towards the costs involved (Ocean freight/storage/etc).** Please let me know what you would like to do." [Emphasis added.] I replied "**I was requesting the return of the shipment soonest we found out there was abandon cargo. I don't**

understand why this same topic is coming back to us. My emails since Jun 19th was already requesting for these options and waited for carrier's advice since. This shipment has no choice to either be returned or abandoned, please urgently advise." [Emphasis added.] See Exhibit "12". I was frustrated by the lack of direction from Econocaribe and Maersk and the amount of time that it was taking them to respond to my repeated requests to address the issue. I was also frustrated because I was requesting return that the cargo be returned, but I was getting no response. My frustration is seen in this email. To my knowledge, Maersk did not "absorb" any of the charges that Kamada thought it would.

12. Later that day, Kamada replied "I need you to tell me if it is to be auctioned or returned. In cases like this, the responsibility of the cargo falls on the shipper on the b/l. We have asked Maersk for this information from the first day that you requested it. From the additional free time request to the abandonment letter to today's response from them. I will do all I can to keep the charges at a minimum." I replied "**I am not familiar with MSK about abandonment procedure and costs will be involved.** Because even returning to the origin, we also can't find either of the seller or the middle man at moment. **All my intention is to have this problem solved soonest possible. Please help me to check with**

MSK if you can talk to some one and ask them what will be cheapest way to solve this matter. I still think returning will be the fastest way, please let me know. [Emphasis added.] See Exhibit "12 ". These email exchanges show my preference to returning the cargo as soon as possible. They also show that I was not familiar with abandonment procedures and their costs and I was looking to Econocaribe for direction.

13. The next day, on July 10, 2013, Kamada emailed a question to me: "Can you confirm if the cargo was insured." I immediately replied "cargo does not have insurance." Six minutes later, Kamada emailed me: "Ok. **The final decision is yours. You can abandon the cargo for sale at destination** with the understanding that all charges(ocean freight, de-vanning, storage, etc...) not covered by the sale of goods will be to your account. We do have your abandonment letter but we needed to get Maersk's stance on the cargo before we proceed. Or **You can return the shipment to US for an attempt to re-sell here but this is usually a more expensive alternative. Should you choose to abandon the cargo, we will begin the process immediately.** Please understand that the steamship lines move very slowly on these things so we will need to continue to push them. **Please let me know and thanks.**" See Exhibit "12".

14. In view of the alternatives that Kamada presented to me, abandoning the cargo at destination with all charges being for Amoy's account or returning the cargo to the US, which, according to Kamada, was more expensive, I replied **"Please proceed with abandonment of containers immediately."** [Emphasis added.] See Exhibit "12". He knew from my emails that I was seeking the cheapest way to solve the matter and that I was look for his advice on how to do this. From the time I received Kamada's June 23, 2013 email, see Exhibit "11", I was led to believe that Amoy could abandon the cargo. I was never told that the letter of abandonment was "only to see if it could pressure Chinese Customs to order disposition." [See Complainant's "Undisputed Fact" No. 24.] If I had been informed that the letter of abandonment was merely a negotiating ploy, I would have insisted that the cargo be re-exported to the United States.

15. Through Econocaribe's Rule 26 disclosure, I learned that on July 10, Ariel emailed my decision to Maersk Florida: "The customer just confirmed they would like to abandon the containers, Please confirm the procedures and costs to do so." Ariel's email was followed up with emails from him on July 12 and July 15, confirming abandonment of the containers. See Exhibit "13". I would have expected that if Amoy couldn't abandon the cargo, it would have been so

informed at this time.

16. Through Econocaribe's Rule 26 disclosure, I also learned, from emails produced by Econocaribe, that on July 9, 2013, Ariel emailed Maersk Florida and asked: "So what are our options here? Since Victory [the Consignee] is not helping out, is our only option abandonment? Can we return the containers back to the US without docs at an additional fee? We need a breakdown of procedures and charges for the following options:-Return back to the US (if possible)-Abandon the cargo." See Exhibit "14". Kamada never informed me that he made his recommendations in his July 10, 2013 email without having received a reply from Maersk on what it considered to be the available options to address the cargo issue.

17. On July 17, 2013, Kamada forwarded me an email that he received from Maersk Florida earlier that day, which appears to be Maersk's reply to Ariel's July 9, 2013 email. That email stated that **"As the cargo owner they absolutely can't abandon the containers, now they must find new buyer at destination or arrange re-export . . . We suggest to them to take quick action to arrange their cargo, even if cargo will be returned to origin, auctioned or destroyed in**

the future due to no one pick up containers. All the fee will be charge to the shipper. According to China Law, When shipment discharge goes past 90 days without pick up by CNE, it will be considered as abandon cargo and can be disposed by China Customs. Due to the cargo nature, China customs will need assistance from the China Inspection and Quarantine Authority to check the cargo first. Only with the result of the inspection, can customs decide what to do with the cargo. **We heard usually there are 3 possible ways of finally handling the cargo: 1. Order return to origin (if cargo is found as prohibited or restricted to import to China; 2. Auction (if cargo is found allowed to import to China). 3. Destroy (if cargo is found not in good condition for return and auction.)**

[Emphasis added.] Kamada prefaced his July 17, 2013 email with the statement that **“Per Maersk, the containers cannot be abandoned until after 90 days of arrival.”** [Emphasis added.] I understood that statement to be his interpretation of the Maersk email and guidance to me on how I should understand that email. My understanding of Kamada’s statement was that Amoy could abandon the containers after a 90 day waiting period. I replied that “this is the exact information we needed to hear from MSK since early June when I first contacted your office. It seems the shipment will need to be destroyed at port of destination, please advise the procedure ASAP.” Ariel responded: “Noted, after the 90 days

China customs will determine how they will proceed either of the three options below. I will follow up and keep you posted on any new development.” I replied: **“I don’t think we can wait for 90 days, can you check again please? If waited longer, the cost will go up sky high.”** Ariel responded: “Noted Melissa, I will check and see but just note this looks like a China Customs regulation. It might be difficult to alter their rules/procedures.” I responded **“If all waited for 90 days, there will be no possible way for anyone to pay these fees, please let me know and I hope MSK can respond faster?”** [Emphasis added.] See Exhibit “15”. At this time, I was hoping that Maersk and Econocaribe would address the cargo problem with Chinese Customs before the 90 day period expired. I also believed that a letter of abandonment would solve the cargo problem. Notwithstanding Ariel’s representation that he would follow up, he didn’t.

18. Through Econocaribe’s Rule 26 disclosure, I learned that after receiving the July 17, 2013 email from Maersk Florida, Kamada responded to it by stating that “If I read the below correctly, we only have to re-import if the cargo is found as prohibited. **It should not be. We should be able to abandon,** auction and or destroy cargo. Is there more to the e-mail that they sent from overseas? I have been involved in a few cases of this nature and we have always been able to

abandon at destination?" [Emphasis added.] Florida Maersk responded to Kamada's email: "Hi John, Correct after 90 days it is considered abandoned but then of course come the additional charges as mentioned in correspondence which will be for the account of the shipper. There was no additional information from overseas." See Exhibit "16". Apparently Kamada did not know or believe that a shipper or cargo interest could not abandon the cargo under these circumstances. I was led me to believe that after 90 days, I could abandon the cargo.

19. Through Econocaribe's Rule 26 disclosure, I also learned of an email exchange between Maersk Florida and Kamada on July 18, 2013. Maersk Florida: "John. Just a heads up right now we are looking at \$6400 USD and we still have 2 more months to go. I have sent an email to our overseas office to see if we can jumpstart the abandonment process or if we have to wait for customs. This is in the effort of reducing the charges that are increasing day by day." Kamada's reply: "Hopefully we can put this file to rest as quickly as possible. Please keep us posted." See Exhibit "17". Kamada did not inform me that the total charges accruing on the four containers as of July 18, 2013 was \$6400USD, which was an increase from the July 9, 2013 email. Although I had been asking for the cost of re-exporting the four containers since June 20, 2013, see Exhibit 7,

Amoy never received a response to its repeated requests for re-export costs until May 12, 2014. See Exhibit "27".

20. Through Econocaribe's Rule 26 disclosure, I learned that neither Maersk nor Econocaribe had done anything for almost a month with regard to addressing the cargo problem. On August 14, 2013, almost a month after Kamada's July 18 email, Ariel sent an email to Maersk Florida: "Can you please confirm the status of this order? As of today how much is storage and how many days do we have until the 90 days are up?" There was no response from Maersk Florida. Kamada sent another followup to Maersk Florida on September 4. Maersk Florida replied as follows: **Per our last communication on this 7/30/2013, you were going to put together a formal letter of abandonment so we can ask our colleague in China present this to Customs and see if they're willing to speed up the 90 day timeline. I never received the letter.** You also noted at that time that your agent confirmed the 90 day waiting period. This cargo discharged 6/17/13 so the waiting period should be coming up within next couple of weeks. We'll go out to MSK China and have then give us all costs to date associated w/this abandoned load." [Emphasis added.] Kamada replied: "I will have the letter to you shortly." See Exhibit "18".

21. Through Econocaribe's Rule 26 disclosure, I also learned that on September 6, 2013, Maersk Florida emailed Kamada: "Regret that this situation with abandoned shipment in China does not look very promising. From everything we're being told, if this cargo is seized by Customs once the 90 days after discharge timeline hits, then it could take China Customs an undetermined amount of time to decide on cargo disposition. MSK China is not able to give us a clear time timeline of how long it may take. **They continue to tell us best option is for your agent in country to see about re-export options before this is seized.** We've already advised that you don't have commercial documents to present to China Customs. Latest communication from MSK China is telling us that if we go ahead and send them your formal letter of abandonment, they can 'try and find a local agency or CHB in the market to ask about this issue.' The detention at destination thru 9/5/13 quoted is already 171480.00 RMB and increases 1980 RMB per day. Please get us a letter on Econocaribe letterhead and let's see if MSK China is able to make any progress." [Emphasis added.] See Exhibit "19".

22. Except for requesting an abandonment letter, the content of the September 6 email from Maersk Florida, Exhibit "19", specifically Maersk's warning to

Kamada that the best option is to see about re-exporting options before the cargo was seized, was not sent to Amoy. See Exhibit "20". If Amoy was told that its "best option" was to re-export the cargo, before it was seized, I would have done so. Instead, I continued to believe that a letter of abandonment was a proper option that would address the issue. Kamada sent Amoy's amended abandonment letter to Maersk Florida on September 10. See Exhibit "19".

23. Through Econocaribe's Rule 26 disclosure, I also learned that Maersk Florida, in a September 12, 2013 email to Kamada, asked him "Any chance at all that you have photos of what was loaded at the supplier? Without commercial documentation, this is getting very difficult to resolve." Kamada sent the photos that day. See Exhibit "21". They were previously sent to him by me. See Exhibit "22". On September 13, 2013, Ariel emailed me asking me to provide him the name and information of the actual shipper that booked the shipment, which I did. See Exhibit "23". These emails show my continuing cooperation and prompt responses to what I believed would address the cargo issue.

24. The next communication that Amoy received from Econocaribe was **seven months later**, an email dated April 15, 2014. Kamada wanted to insure that

Amoy received an update on the booking. Because I hadn't heard from him for seven months, I thought that the letter of abandonment had successfully addressed the cargo issue. However, that was not the case. The email proposed some alternatives with regard to returning the cargo. Maersk China recommended "**that return cargo process is initiated right away to avoid possible fines down the road.**" [Emphasis added.] See Exhibit "24". I replied to the email, stating "**It has been long time we waited to hear from MKS about this freight.** If any suggestions you can help to come up and take care of this problem, please let me know. I want to solve this problem soonest possible." [Emphasis added.] I also stated in that email that "the total cost listed below is really expensive and I can't afford to pay them." I made that statement, not because I was admitting liability for those costs, but because of an email that I received from Econocaribe earlier that day regarding costs and the amount of those costs. I did not believe that I should pay them. I considered those costs had unnecessarily accrued because of Econocaribe's failure to address the problem from the outset and its failure to keep me properly informed. See, for example paragraph 22 of this Declaration. This was the first time that a demand was made on Amoy for those costs. On April 17, I asked Kamada about the abandonment letter: "Once abandonment letter was sign to carrier, they usually don't come back to ask to take the container

back, can you please check again?" On April 22, Kamada replied that because the cargo was mis-declared, "this is their only option", meaning re-export to the US. See Exhibit "25". This was information that he should have told me at the outset or at least when he sent his September 8, 2013 email to me. See Exhibit "20". This is the first time that Econocaribe asked Amoy to re-export the cargo, which was what Amoy wanted to do from the outset.

25. On April 22, I sent Kamada an email informing him that "the problem is bringing it back to US, we don't have importer for this container. **They took too long to get back to us.** We have this company as original seller to the people who shipped with us, if MSK is to return, can they list them as importer on MBL?" Kamada replied: "Maersk is ok with showing this customer as the importer on the b/l. Just note that the charges need to be paid up front PRIOR to the cargo returning to Los Angeles. Will this customer be responsible for clearing the freight?" [Emphasis added.] See Exhibit "26". It was my understanding from this email Maersk required the charges to be paid prior to the cargo being returned to Los Angeles. Those charges to almost \$200,000. This was the first time that a demand was made on Amoy to pay all charges for the cargo before it was returned to Los Angeles. I could not afford to pay those charges, which I consider to be the

result of Maersk and Econocaribe's failure to have addressed the problem earlier. I warned Econocaribe, soon after the cargo discharged, that costs would go "sky high" if quick action wasn't taken. See Exhibit "15". My April 22, 2014 email shows that even though Econocaribe and Maersk "took too long to get back to us," I believed that I could find a shipper. In May and June, 2014, I tried to find a shipper. I contacted several companies to see if they were interested in dealing with the cargo. Three companies, BJ Used Tire & Recycling, Inc., Load n Ship, and R4 Solutions (E-Waste), showed an initial interest and at their request, I sent them photographs. These photographs were sent to my attorney by Econocaribe's attorney, Neil Mooney. These companies then wanted samples, verification of the exact type of recycled tire and how they were processed, which I was unable to provide. I called four other companies, but they were not interested. I was still working on finding a shipper, up to the time that Econocaribe filed its FMC complaint in August, 2014.

26. On May 12, 2014, Kamada sent me an email where he stated that "the initial D&D (excluding re-export charges) quoted by Maersk was \$171K and we went out and obtained mitigated amount of D&D \$50K plus the re-export charges, total all charges \$67K. As per our discussion on same, this amount fell within the

numbers you and I discussed.” See Exhibit “27”. This email is the first time that Econocaribe responded to Amoy’s request for the cost of re-exporting the cargo.

27. From Econocaribe’s Rule 26 disclosure, I learned that on May 12, 2014, Kamada received an email from Maersk Florida stating: “Abandonment letter does not release shipper of liability. We requested the formal abandonment letter to see if we could put pressure on China Customs to order disposition. This cargo was mis-declared as ‘auto parts’ when in fact it was ‘used tires’ which is a restricted commodity into China and one which is heavily fined. **Maersk did not sit on this.** We kept communication flow going asking Maersk China to intervene but it is not uncommon for China Customs to hold unto cargo, sometimes over a year. to render a decision. **At that time we made it known that best option was to find a consignee or start re-export, which is what we’re doing now.**” On May 14, 2014, Maersk Florida sent Kamada another email stating: “Maersk is not the bad guy here. In fact, your customer declared auto parts and shipped a restricted commodity to China. Of course, they choose to ignore that this is root cause of cargo siting and facing re-export. **Actually when this situation first arose, the options provided to Econocaribe were to find a new buyer or re-export but Econocaribe was not able to provide required**

commercial docs to initiate this process, prior to Customs seizure of the cargo. [Emphasis added.] See Exhibit "28". Maersk's email shows that the "best options" that it gave to Econocaribe were to find a new buyer or re-export. Re-export was Amoy's preference. Nevertheless, Econocaribe suggested that Amoy issue a letter of abandonment.

28. Through Econocaribe's Rule 26 disclosure, I learned that on June 9, 2014, Maersk Florida emailed the following to Kamada: "China Customs controls and decides when disposal can be arranged and for that reason, we don't have a final invoice from Customs. On that basis, Maersk China chose to petition Customs to allow re-export process to mitigate our exposure and costs, rather than to let cargo continue to sit while Customs decides when to order disposition. See Exhibit "29". That email was followed up by another email of June 11, from Maersk Florida stating: Maersk petitioned disposal from China Customs back in March, 2014, and so far no feedback. See Exhibit "30". When I read this email, I was surprised to learn that Maersk waited 9 months after the cargo arrived before it petitioned China Customs regarding the disposal of the cargo.

29. On or about May 18, 2014, I had a telephone conference with Kamada.

His recollection of our conversation is incorrect. I did not tell him that "this was not the first time that Amoy had shipped used tires by providing false information to another NVOCC"; or that "the previous misdeclaration was also done by the same employee Krystal Lee" or "that as a result of Krystal Lee's misconduct, Amoy paid other NVOCC damages Amoy caused"; or that she did "the previous misdeclaration willfully." Krystal Lee was involved in another incident, where she was contacted by Clare Anderson of Sea Consulting, LLC to book 16 containers of wood pulp to Greece in October, 2012. 5 containers were shipped on an MSC vessel and 11 containers were shipped on a ZIM vessel. It turned out that the containers contained reusable paper and wet waste paper instead of wood pulp. Because of the discrepancy, MSC and ZIM made claims against Amoy, which it settled with these carriers. Mr Anderson was found guilty of wire fraud in connection with this and other shipments that he made and was sentenced for that crime. See Exhibit "31"; Request for Judicial Notice. Krystal was not charged with a crime. She committed no misconduct. The previous incident did not involve an NVOCC, but ocean carriers; it did not involve used tires, but reusable paper and wet waste paper. There were no other incidents involving Krystal and other NVOCCs or misdeclarations or baled tires.

30. Kamada is also wrong in his recollection that I told him "Krystal Lee did this [meaning the Econocaribe transaction] . . . willfully" or "that Krystal Lee colluded with the shipper of the cargo; that Krystal Lee was terminated because of this misconduct." I did not tell him that. I know of no facts that Krystal either wilfully misdeclared the cargo or that she colluded with the shipper John Chen to misdeclare the cargo. She handled the booking as she would have for other bookings. She received a packing slip and commercial invoice from the shipper, see Exhibits "4" and "5". He sent her a completed Amoy Shipper's Letter of Instruction, Exhibit "6". He also sent her a photograph of the cargo that she requested, which is found in Exhibit "32". Amoy believed that this was a photograph of the cargo.

31. In preparing this Declaration, I was asked by Amoy's attorney, Mr. Mirkovich to see if there were any more documents or emails pertaining to the booking made by Mr. Chen. Amoy no longer has Krystal's computer because it was attacked by a virus. As a result, I accessed her back-up Gmail account and found additional emails that were exchanged with Mr. Chen. See Exhibit "32". These emails begin on May 17, 2013 and extend to May 24, 2013. They include emails that transmitted the packing list, Exhibit "4" and the commercial invoice, Exhibit "5". A requested picture of the cargo was also included. Part of Exhibit

"32" also includes emails found in Exhibit 1. These emails and attachments support my belief that Krystal did not misdeclare the cargo wilfully or that she colluded with Mr. Chen.

32. Except for documents that were produced by Econocaribe in its Rule 26 disclosure, the documents that are attached as exhibits to my declaration are all business records maintained by Amoy in the course of its business.

I declare under penalty of perjury of the law of the United States of America that the foregoing is true and correct.

Executed on January 19, 2015 at Long Beach, California.

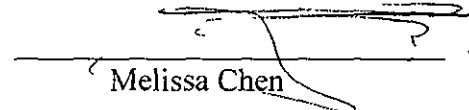

Melissa Chen

EXHIBIT 1

Ph: (626) 855-3077 Fax: (626) 855-3078

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9262

Website: www.amovline.com E: krystal@amovline.com

Follow us on Twitter! Skype: krystal.amovline

Website: www.amovline.com

P.S. Green tree. Please don't print this e-mail unless it's really necessary! :)

From: John Chen [mailto:john@kumquat-tree.com]

Sent: Friday, May 17, 2013 3:31 PM

To: sales@amovline.com

Subject: export container to tianjin

Dear export rate,

This is John from Kumquat Tree Inc. I saw your info on your website and I need to ship some containers from Oakland to Xingang.

Please quote me your rate for 40' and 40'HQ.

Commodity: auto parts.

My phone number is 215-206-0449.

Thanks

Hallo John,

I hope all is well with you.

Please see the rate below:

From Oakland, California to Xingang

Carrier: Maersk

Ocean Freight: \$955 40'HQ

Transit time: 23 Days

Carrier: NYK

Ocean Freight: \$1356 40'HQ

Transit time: 13 Days

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 26th, 2010!
Please click here to download our ISF Form.

Amoy International LLC

[PMC License No.: 019113N] [PMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03506]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

EXHIBIT 2

09/15/2014 10:53 16268553078

AMOVLINE

PAGE 02

Pre Alert

BILL OF LADING

ECONOCARIBE

NON-NEGOTIABLE

SHIPPER/EXPORTER

AMOY INTERNATIONAL
14145 PROCTOR AVE, SUITE 14
CITY OF INDUSTRY, CA 91746

DOCUMENT NO.

ECCI LAX-CNCG-04-439024

EXPORT REFERENCES

MASH
560323561

CONSIGNEE

VICTORY MARITIME SERVICES (CHINA) LTD
TIANJIN BRANCH
504, TOWER C, CITY CENTER, XI KANG ROAD,
HE PING DISTRICT, TIANJIN, CHINA
TEL: 86-22-23336411/33/55
FAX: 86-22-23336400
CTC: MS LIU HUI

FORWARDING AGENT - REFERENCES

POINT AND COUNTRY OF ORIGIN

NOTIFY PARTY

SAME AS CONSIGNEE

DOMESTIC ROUTING/EXPORT INSTRUCTIONS

Issued By (15) LOS ANGELES - CA

PLACE OF RECEIPT

ONWARD ISLAND ROUTING

EXPORTING CARRIER (Vessel) (Flag)

CMA CGM VIVALDI V301W

SEA PORT OF DISCHARGE

XINGANG/CHINA

PORT OF LOADING

OAKLAND/CA/UNITED STATES

FINAL DELIVERY TO

Xingang/CHINA

SHIPPER LOAD, STOW, COUNT AND SEAL

PARTICULARS FURNISHED BY SHIPPER				
MARKS AND NUMBERS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	VOLUME
PONU-125078-1 SEAL: 2300720	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM
MRKU-612025-9 SEAL: 2300719	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM
PONU-107761-9 SEAL: 2300718	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM
MRKU-023221-0 SEAL: 2300717	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM

AES (TN: X20130524032027

FREIGHT PREPAID

Declared Value Per Package if Value is More Than \$500. - per Package USD

These Commodities, Technology or Software Were Exported From The United States in Accordance With The Export Administration Regulations.

Diversion Contrary To U.S. Law Prohibited.

Shipper-AMOVINT0001

Please Contact:

Bill of Lading No. ECCI LAX-CNCG-04-439024

VICTORY MARITIME SERVICES (CHINA) LTD
504 TOWER C CITY CENTER CXI KANG ROAD
HE PING DISTRICT TIANJIN CHINA
TEL: 86-22-23336411/33/55
FAX: 86-22-23336400
CTC: MS LIU HUI

SAME AS CONSIGNEE

TRANSPORTATION PURSUANT TO THIS BILL OF LADING IS SUBJECT TO CONDITIONS SET FORTH IN ECONOCARIBE PUBLISHED TARIFF.

(THREE) BILL OF LADING,
ALL OF THE SAME TENOR AND DATE, ONE OF WHICH BEING
ACCOMPLISHED, THE OTHER TO STAND VOID.

By ECONOCARIBE

29-May-2013

OAKLAND/CA/UNITED STATES

PORT

Page 1 of 1 (REV: 0)

AM-0010

Exhibit 2-1

EXHIBIT 3

 MAERSK LINE		NON-NEGOTIABLE WAYBILL		LONG MAEU W/M 560323561
Shipper ECONOCARIBE CONSOLIDATORS 637 E. ALBERTONI ST, SUITE 104 CARSON, CA 90746 PHONE 1-310-817-2746		Booking No. 560323561		Date of Issue ECI REF:04-439024
Consignee VICTORY MARITIME SERVICES (CHINA) LTD 504 TOWER CCCCITY CENTER CKI KANG ROAD HE PING DISTRICT CITIANJIN CHINA TEL. F86-22-2338411/33/55 FAX F86-22-23356400 CTCIMS LRU HUI.		Date of Receipt 646516		Remarks This contract is subject to the terms and conditions, including the latest amendments, of the Maersk Line Bill of Lading (including the conditions of carriage and the conditions of the contract of carriage) which are applicable to the vessel on which the goods are carried. The shipper on entering this bill of lading certifies that the goods are as described and that the weight, quantity, value and condition of the goods are as stated. The shipper shall be liable for any loss or damage to the goods or for any delay in delivery of the goods caused by the shipper's negligence or that of its agents, servants or subcontractors. The carrier shall be under no liability whatsoever for loss or damage to the goods or for any delay in delivery of the goods caused by the carrier's negligence.
Notify Party SAME AS CONSIGNEE		Place of Receipt QINGDAO		Place of Delivery QINGDAO
Vessel CHA CHA VIVALDI		Voyage No. 938W		Date of Delivery 2013-05-31
Port of Loading OAKLAND, CA, US		Port of Discharge Xingang, China		Date of Discharge 2013-05-31

PARTICULARS FURNISHED BY SHIPPER			
Description of Goods 4 containers said to contain 100 PACKAGES		Weight 68000.000 KGS	Measurement 200.000 CBM
CERTIFIED			
TRUE COPY			
AUTO PARTS AES ITN: X201 56403202 XINGANG/CHINA PONU1750780 40 DRY 8'6" 25 PACKAGES 22000.000 KGS 50.000 CBM Shipper Seal : 2300720 PONU1877617 40 DRY 8'6" 26 PACKAGES 22000.000 KGS 50.000 CBM Shipper Seal : 2300720 MRKU0232728 40 DRY 8'6" 26 PACKAGES 22000.000 KGS 50.000 CBM Shipper Seal : 2300717 MSKU6129259 40 DRY 8'6" 26 PACKAGES 22000.000 KGS 50.000 CBM Shipper Seal : 2300715 THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS. DIVERSION CONTRARY TO U.S. LAW PROHIBITED. SHIPPER'S LOAD, STOW, WEIGHT AND COUNT.			

Freight & Charges	Rate	Unit	General	Remark	Other
Certified Receipt, this receipt is given for the goods as presented by the shipper and is subject to the conditions of the contract of carriage. The carrier shall not be liable for loss or damage to the goods or for any delay in delivery of the goods caused by the carrier's negligence or that of its agents, servants or subcontractors. The shipper shall be liable for any loss or damage to the goods or for any delay in delivery of the goods caused by the shipper's negligence or that of its agents, servants or subcontractors.					
Certified Receipt, this receipt is given for the goods as presented by the shipper and is subject to the conditions of the contract of carriage. The carrier shall not be liable for loss or damage to the goods or for any delay in delivery of the goods caused by the carrier's negligence or that of its agents, servants or subcontractors. The shipper shall be liable for any loss or damage to the goods or for any delay in delivery of the goods caused by the shipper's negligence or that of its agents, servants or subcontractors.		The Woodlands			
Date of Issue 2013-05-29		Date of Receipt 2013-05-31			
Declared Value (per container) in US\$ of the goods (if not otherwise stated)		Paid for the Carrier's Agent - Maersk Line			
For Carrier		Maersk Agency U.S.A., Inc. - Houston CRC As Agent for the Carrier			

This transport document has one or more numbered pages

AM-0004

Exhibit 3-1

EXHIBIT 4

Exporter(name & address): KUMQUAT TREE INC 612E Live Oak Ave, Arcadia, CA91006		PACKING LIST		
To: TianJin Tenfei Trading Co. contact: MR. MA HaoXiongGang trade center 9024,Dongli District; TIANJIN, CHINA PHONE: 001-6263102797		INVOICE NUMBER:	Date: 5 23 2013	
		From: OAKLAND	To: XINGANG	
Description of Goods	Packages	Gross weight (kilogram)	net weight (kilogram)	Meas. (CBM)
AUTOPARTS	25 PKGS/40'	25000/40'	22000/40'	50CBM
TOTAL:		C5		
Marks & Numbers:				

9000-1WV

6

EIN: 954330824

7

AM-0007

EXHIBIT 5

215 206 0449

Shipper Exporter(name & address): KUMQUAT TREE INC 612E Live Oak Ave, Arcadia, CA91006		商业发票 COMMERCIAL INVOICE		
To: TianJin Tenfei Trading Co. contact: MR. MA HaoXiongGang trade center 9024,Dongli District, TIANJIN, CHINA PHONE: 001-6263102797		INVOICE NUMBER:	Date: 5 23 2013	
<i>Call on FBL</i>		From: Oakland	To: XINGANG	
Shipping Marks	Description of Goods	Quantity (KGS)	Unit Price (IN USD)	Amount (USD)
	AUTO PARTS	25 PKGS/40'		\$25,000.00
	TOTAL:			

ALP 0000

88

EXHIBIT 6



Amoy International

SHIPPER'S INSTRUCTIONS							
U.S. PRINCIPAL PARTY IN INTEREST (USPP) (COMPLETE NAME/ADDR/CONTACT NUMBER)					BOOKING NUMBER		
KUMQUAT TREE INC 612E Live Oak Ave, Arcadia, CA91006							
ULTIMATE CONSIGNEE (COMPLETE NAME/ADDR/CONTACT NUMBER)							
TO BE ADVISED, REFER TO COMMERCIAL INVOICE							
USPP EIN (IRS) NO. OR TAX ID NO. 954330824							
SHIPPER'S REFERENCE PO 1367							
MODE OF TRANSPORT AIR OCEAN ☒							
PORT OF LOADING OAKLAND PORT OF DISCHARGE XINGANG							
SERVICE TYPE LCL ☒ FCL SIZE							
HAZARDOUS MATERIALS YES NO ☒							
P/U & DELIVER DR-DR DR-CY CY-DR CY-CY ☒							
SCHEDULE B DESCRIPTION OF COMMODITIES							
CONTAINER NO. /					GROSS	NET	
NO. OF PKGS	SCHEDULE B NUMBER DESCRIPTION				WEIGHT	WEIGHT	CARGO VALUE (US)
	AUTO PARTS						
PAYMENT METHOD PREPAID ☒ COLLECT							
INSURANCE NO ☒							
YES >> CARGO VALUE IN US\$							
ORIGINAL BILL OF LADING NO ☒							
YES >> SELF PICK UP @ APEX							
>> BY COURIER (W/ EXTRA CHARGE)							
OTHERS							
SIGNATURE				SHIPPER INSTRUCTIONS IN CASE OF INABILITY TO			
TITLES				DELIVER CONSIGNMENT AS CONSIGNED			
DATE				ABANDON			
TEL				RETURN TO SHIPPER ☒			
				DELIVER TO			

2

AM-0002

Exhibit 6

EXHIBIT 7

On Jun 17, 2013, at 11:20 AM, "Ariel Martinez" <amartinez@econocaribe.com> wrote:

Noted Melissa

What do you need us to do?

I've copied in John Kamada to assist with the issue.

Ariel Martinez

Econocaribe Consolidators, Inc.

637 EAST ALBERTONI ST.

SUITE 104

CARSON CA 90746

Tel 310.817.2746 Fax 310.817.2751

Email: amartinez@econocaribe.com

<image001.png>

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****ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013****

AZ CFS

2220 E. Carson Street

Long Beach, CA 90810

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]

Sent: Monday, June 17, 2013 11:15 AM

To: Ariel Martinez; Krystal / Amoyline

Subject: RE: New Booking from Oakland to Xingang - 04-439024

Dear Ariel

We are having difficulty locating shipper who placed order with us, and I believe that we have problem with this shipment as we are also unable to locate the consignee on the BL. can you please forward us to your manager as we need assistances to this issue, containers are arriving to Tianjin today.

thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586]

EXHIBIT 8

Joe Mirkovich

From: Melissa / Amoy Line <melissa@amoyline.com>
Sent: Monday, June 17, 2013 11:54 AM
To: 'John Kamada'; 'Ariel Martinez'
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi John

thanks for your reply.

We have completely lost contact with the supplier / buyer for these 4 containers, and we also just found out the commodities were auto parts, but they are recycle items. I'm still trying to get more information from vendor about these items.

In this case, can we request MSK to allow us some extra time at port of destination or abandon the cargo or return to US seller or resell to other ports in China?

Please kindly advise.

thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)
Ph: (347) 689-9255 Fax: (347) 689-9267
Website: www.amoyline.com
Please [click here](#) to download our ISF Form.

~~~~~  
♻️ Save a tree. Please don't print this e-mail unless it's really necessary! :)

---

**From:** John Kamada [mailto:jkamada@econocaribe.com]  
**Sent:** Monday, June 17, 2013 11:23 AM  
**To:** Ariel Martinez  
**Cc:** Melissa / Amoy Line; Krystal / Amoyline  
**Subject:** Re: New Booking from Oakland to Xingang - 04-439024

Hi Melissa,  
Please let me know what you need from me. I am happy to assist.

John.

Sent from my iPhone

EXHIBIT 9

**Noted, I've been working on this with carrier. We are waiting for them to confirm all the charges. I will let you know once they revert the details.**

Ariel Martinez  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST.  
SUITE 104  
CARSON CA 90746  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)



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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\***

**AZ CFS**

**2220 E. Carson Street  
Long Beach, CA 90810**

---

**From:** Krystal / Amoyline [<mailto:krystal@amoyline.com>]  
**Sent:** Thursday, June 20, 2013 3:52 PM  
**To:** Ariel Martinez  
**Cc:** [GABY@AMOYLINE.COM](mailto:GABY@AMOYLINE.COM); 'Melissa / Amoy Line'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

**Hello Ariel,**

**Yes, please include all fees including return to US, thank you**

Thank You  
Krystal Lee  
Sales & Marketing  
Mandatory ISF begins January 26th, 2010!  
Please [click here](#) to download our ISF Form.

~~~~~  
Amoy International LLC
[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NV003586]
14145 Proctor Ave, Suite 14 City of Industry, CA 91746 (LA Office)
Ph: (626) 855-3077 Fax: (626) 855-3078
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)
Ph: (347) 689-9255 Fax: (347) 689-9267
Website: www.amoyline.com E: krystal@amoyline.com
Follow us on [Twitter](#)! Skype: krystal.amoyline

Website: www.amoyline.com

~~~~~  
I Save a tree. Please don't print this e-mail unless it's really necessary! :)

**From:** Ariel Martinez [<mailto:amartinez@econocaribe.com>]  
**Sent:** Thursday, June 20, 2013 3:47 PM  
**To:** Krystal / Amoyline  
**Cc:** [GABY@AMOYLINE.COM](mailto:GABY@AMOYLINE.COM); 'Melissa / Amoy Line'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Hello Krystal,

**All charges for the OFR to Xingang? Or the return back to the US?**

Ariel Martinez  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST.  
SUITE 104  
CARSON CA 90746  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)



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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\***

**AZ CFS**

**2220 E. Carson Street.  
Long Beach, CA 90810**

**From:** Krystal / Amoyline [<mailto:krystal@amoyline.com>]  
**Sent:** Thursday, June 20, 2013 3:46 PM  
**To:** Ariel Martinez  
**Cc:** [GABY@AMOYLINE.COM](mailto:GABY@AMOYLINE.COM); 'Melissa / Amoy Line'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

**Hello Ariel,**

**Please confirm all charges for this shipment and carrier confirmation for this shipment, thank you**

Thank You

Krystal Lee  
Sales & Marketing  
Mandatory ISF begins January 26th, 2010!  
Please [click here](#) to download our ISF Form.

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## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NVO03586]  
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)  
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649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)  
Ph: (347) 689-9255 Fax: (347) 689-9267  
Website: [www.amoyline.com](http://www.amoyline.com) E: [krystal@amoyline.com](mailto:krystal@amoyline.com)  
Follow us on [Twitter](#)! Skype: [krystal.amoyline](#)  
Website: [www.amoyline.com](http://www.amoyline.com)

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P Save a tree. Please don't print this e-mail unless it's really necessary! :)

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**From:** Krystal / Amoyline [<mailto:krystal@amoyline.com>]  
**Sent:** Thursday, June 20, 2013 3:58 PM  
**To:** 'Ariel Martinez'  
**Cc:** 'GABY@AMOYLINE.COM'; 'Melissa / Amoy Line'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Hi Ariel,

Thank you

Thank You  
Krystal Lee  
Sales & Marketing  
Mandatory ISF begins January 26th, 2010!  
Please [click here](#) to download our ISF Form.

---

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NVO03586]  
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)  
Ph: (626) 855-3077 Fax: (626) 855-3078  
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)  
Ph: (347) 689-9255 Fax: (347) 689-9267  
Website: [www.amoyline.com](http://www.amoyline.com) E: [krystal@amoyline.com](mailto:krystal@amoyline.com)  
Follow us on [Twitter](#)! Skype: [krystal.amoyline](#)  
Website: [www.amoyline.com](http://www.amoyline.com)

---

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---

**From:** Ariel Martinez [<mailto:amartinez@econocaribe.com>]  
**Sent:** Thursday, June 20, 2013 3:55 PM  
**To:** Krystal / Amoyline  
**Cc:** 'GABY@AMOYLINE.COM'; 'Melissa / Amoy Line'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Joe Mirkovich

---

From: Melissa / Amoy Line <melissa@amoyline.com>  
Sent: Friday, June 21, 2013 9:44 AM  
To: 'John Kamada'; 'Ariel Martinez'  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Importance: High

Dear John,

the vessel arrived to port for few days now, and I understand you are still waiting to hear from MSK but we are running out of time.

This is abandoned shipment by shipper / consignee. We can as well abandon it, but we want to keep everything in the good term and to solve this matter instead of dropping it. If you need me to issue abandon letter to MSK to push them for faster response please let me know. We sincerely just want to solve this matter the quickest possible.

Please let us know soonest you can.

Thank you,

Melissa Chen

---

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NVO03586]  
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)  
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008  
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Ph: (347) 689-9255 Fax: (347) 689-9267  
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Please [click](#) here to download our ISF Form.

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♻️ Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: Krystal / Amoyline [mailto:krystal@amoyline.com]
Sent: Friday, June 21, 2013 9:31 AM
To: 'Ariel Martinez'
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Ariel,

Please advise if carrier has updated you with the fees?

Thank you

Thank You

EXHIBIT 10

Hi Melissa,

We are still waiting on Maersk but I would suggest you prepare the abandon letter and have it ready to go.

Thanks

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Friday, June 21, 2013 9:44 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024
Importance: High

Dear John,

the vessel arrived to port for few days now, and I understand you are still waiting to hear from MSK but we are running out of time.

This is abandoned shipment by shipper / consignee. We can as well abandon it, but we want to keep everything in the good term and to solve this matter instead of dropping it. If you need me to issue abandon letter to MSK to push them for faster response please let me know. We sincerely just want to solve this matter the quickest possible.

Please let us know soonest you can.

Thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
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Website: www.amoyline.com
Please [click](#) here to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: Krystal / Amoyline [mailto:krystal@amoyline.com]
Sent: Friday, June 21, 2013 9:31 AM
To: 'Ariel Martinez'
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Ariel,

Please advise if carrier has updated you with the fees?

Thank you

EXHIBIT 11

****ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013****

AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: Melissa / Amoyline [mailto:melissa@amoyline.com]
Sent: Monday, July 01, 2013 7:43 PM
To: John Kamada
Cc: Ariel Martinez; Krystal / Amoyline
Subject: Re: New Booking from Oakland to Xingang - 04-439024

Hi John

Ok, we want to know what MSK would do in this case.

Thank you,

Melissa Chen
Amoy International
T: 626.855.3077 F: 626.855.3078
Melissa@amoyline.com

On Jul 1, 2013, at 7:29 PM, John Kamada <jkamada@econocaribe.com> wrote:

Hi Melissa,

We will call Maersk tomorrow and push them for a response. These types of things usually take a while but I will make sure we expedite it.

Hope to have some answers to you shortly.

Thanks,

john

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Monday, July 01, 2013 11:12 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

no, we did not find buyer because of the commodity is not permitted to go into China.
I wanted to list the buyer on BL of what shipper gave us originally. please let me know.

Melissa Chen

Amoy International LLC
[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008
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Website: www.amoyline.com
Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:kamada@econocaribe.com]
Sent: Monday, July 01, 2013 11:01 AM
To: Melissa / Amoy Line; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Given the circumstances, we can probably still revise the Maersk B/L. Do you think you might find another buyer?

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Monday, July 01, 2013 10:57 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi John

the process here is taking really long time and we all don't know what is happening and what MSK is going to do with the containers. there is no word from anyone on how they want to resolve this issue.

meanwhile, please let me know if you can still amend original consignee on the BL with MSK?

thanks,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)
Ph: (347) 689-9255 Fax: (347) 689-9267
Website: www.amoyline.com
Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:kamada@econocaribe.com]
Sent: Sunday, June 23, 2013 10:44 AM
To: Melissa / Amoy Line; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi Melissa,

We are still waiting on Maersk but I would suggest you prepare the abandon letter and have it ready to go.

Thanks

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Friday, June 21, 2013 9:44 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024
Importance: High

Dear John,

the vessel arrived to port for few days now, and I understand you are still waiting to hear from MSK but we are running out of time.

This is abandoned shipment by shipper / consignee. We can as well abandon it, but we want to keep everything in the good term and to solve this matter instead of dropping it. If you need me to issue abandon letter to MSK to push them for faster response please let me know. We sincerely just want to solve this matter the quickest possible.

Please let us know soonest you can.

Thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)
Ph: (347) 689-9255 Fax: (347) 689-9267
Website: www.amoyline.com
Please [click here](#) to download our ISF Form.

♻️ **Save a tree. Please don't print this e-mail unless it's really necessary! :)**

From: Krystal / Amoyline [mailto:krystal@amoyline.com]
Sent: Friday, June 21, 2013 9:31 AM
To: 'Ariel Martinez'
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Ariel,

Please advise if carrier has updated you with the fees?

Thank you

EXHIBIT 12

Joe Mirkovich

From: Melissa / Amoy Line <melissa@amoyline.com>
Sent: Friday, July 12, 2013 12:26 PM
To: 'John Kamada'; 'Ariel Martinez'
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi John

following up on the status with MSK, please advise if any response?

Thank you.

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008
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Ph: (347) 689-9255 Fax: (347) 689-9267
Website: www.amoyline.com
Please click here to download our ISF Form.

♻️ **Save a tree. Please don't print this e-mail unless it's really necessary! :)**

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Wednesday, July 10, 2013 10:36 AM
To: 'John Kamada'; 'Ariel Martinez'
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Dear John

Please proceed with abandonment of the containers immediately.

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
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Website: www.amoyline.com
Please click here to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:jkamada@exonocaribe.com]
Sent: Wednesday, July 10, 2013 9:59 AM
To: Melissa / Amoy Line; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

OK,

The final decision is yours.

You can abandon the cargo for sale at destination with the understanding that all charges (ocean freight, de-vanning, storage etc...) not covered by the sale of goods will be to your account. We do have your abandonment letter but we needed to get Maersk's stance on the cargo before we could proceed.

OR

You can return the shipment to US for an attempt to re-sell here but this is usually a more expensive alternative.

Should you choose to abandon the cargo, we will begin the process immediately. Please understand that the steamship lines move very slow on these things so we will need to continue to push them.

Please let me know and thanks.

John

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Wednesday, July 10, 2013 9:53 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

dear John

cargo does not have insurances.

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586]
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)
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Ph: (347) 689-9255 Fax: (347) 689-9267
Website: www.amoyline.com
Please [click](#) here to download our ISF Form.

~~~~~  
A Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:jkamada@econocaribe.com]  
Sent: Wednesday, July 10, 2013 9:45 AM  
To: Melissa / Amoy Line; Ariel Martinez  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Good Morning,

Can you confirm if the cargo was insured?

~~~~~  
From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Tuesday, July 09, 2013 11:19 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi John

I am not familiar with MSK about abandonment procedure and costs will be involved. Because even returning to the origin, we also can't find either of the seller or the middle man at moment.
All my intention is to have this problem solved soonest possible. Please help me to check with MSK if you can talk to someone and ask them what will be cheapest way to solve this matter.

I still think returning will be the fastest way, please let me know.

thank you,

Melissa Chen

~~~~~  
**Amoy International LLC**

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NVO03586]  
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)  
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Please [click here](#) to download our ISF Form.

~~~~~  
A Save a tree. Please don't print this e-mail unless it's really necessary! :)

~~~~~  
From: John Kamada [mailto:jkamada@econocaribe.com]  
Sent: Tuesday, July 09, 2013 10:53 AM  
To: Melissa / Amoy Line; Ariel Martinez  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Thanks Melissa,

I need you to tell me if this is to be auctioned or returned. In cases like this, the responsibility of the cargo falls on the shipper on the b/l. We have asked Maersk for this information from the first day that you requested it. From the additional free time request to the abandonment letter to today's response from them. I will do all I can to keep the charges at a minimum.

Thanks

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]  
Sent: Tuesday, July 09, 2013 10:27 AM  
To: John Kamada; Ariel Martinez  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi John

I was requesting the return of the shipment soonest we found out there this was abandoned cargo. I don't understand why this same topic is coming back now to us. My email since Jun 11<sup>th</sup> was already requesting for these options and waited for carrier's advise since.

This shipment has no choice to either be returned or abandoned. please urgently advise.

Melissa Chen

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586]

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♻️ Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:jkamada@econocaribe.com]  
Sent: Tuesday, July 09, 2013 9:37 AM  
To: Melissa / Amoy Line; Ariel Martinez  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi Melissa,

Maersk will probably be able to absorb some of these charges. Unfortunately, abandoning the cargo does not relieve the shipper of the potential charges. At this point, the storage charges are not the biggest issue. Since no other consignee can be located, you have the option to return the cargo back to the US or have it sold towards the costs involved (Ocean freight/storage/etc).

Please let me know what you would like to do.

Thanks,

John

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]  
Sent: Tuesday, July 09, 2013 9:27 AM  
To: Ariel Martinez; John Kamada  
Cc: Krystal / Amoyline  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Dear Ariel

why is MSK took so long to take this step. We will not be responsible for the storages for these containers. I have started requesting the assistance since June 17<sup>th</sup>. please advise.

Melissa Chen

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NV003586]  
14145 Proctor Ave, Suite 14 City of Industry, CA 91746 (LA Office)  
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Website: [www.amoyline.com](http://www.amoyline.com)  
Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: Ariel Martinez [mailto:amartinez@econocaribe.com]  
Sent: Tuesday, July 09, 2013 8:58 AM  
To: Melissa / Amoyline; John Kamada  
Cc: Krystal / Amoyline  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Melissa,

Please see the response from Maersk overseas office below:

On 4<sup>th</sup> July we have contacted with enee VICTORY MARITIME SERVICES (022-2336331 ms/tn). Customer said that it was not their shipment and would help to check first and inform us.

On 8<sup>th</sup> July we contacted with VICTORY MARITIME SERVICES (022-2336331 ms/tn) again, she said that it was actually not their booking and their overseas company also no respond about the shipment. They have no idea about it.

Pls urgently inform shipper accordingly and advise if they need to find new ones to help them return issue. Any update pls inform us urgently.

Detention by today is 18360 RMB and will daily increase as below tariff.

Pls make sure shipper as cargo owner be informed the longstanding. They need to push CNEE arrange cargo delivery ASAP.

PS: RKEM gate-out just means cntr shift from terminal to depot to avoid terminal congestion.

|                       |                    |           |     |     |      |
|-----------------------|--------------------|-----------|-----|-----|------|
|                       |                    |           |     |     |      |
| <b>Dry</b><br>干箱      | <b>20' Dry</b>     | Free (免费) | 70  | 180 | 360  |
|                       | <b>40' Dry</b>     | Free (免费) | 120 | 330 | 660  |
|                       | <b>40' High</b>    | Free (免费) | 130 | 360 | 720  |
|                       | <b>45' High</b>    | Free (免费) | 180 | 420 | 840  |
|                       |                    |           |     |     |      |
| <b>Special</b><br>特种箱 | <b>20' Special</b> | Free (免费) | 210 | 420 |      |
|                       | <b>40' Special</b> | Free (免费) | 280 | 560 |      |
|                       |                    |           |     |     |      |
| <b>Reefer</b><br>冷藏箱  | <b>20' REEFER</b>  | Free (免费) | 190 | 380 | 760  |
|                       | <b>40' REEFER</b>  | Free (免费) | 380 | 760 | 1500 |

Thanks and best regards  
Eggy Xu / Ms. 许春颖  
Maersk (China) Shipping Co., Ltd Qingdao Branch  
马士基(中国)航运有限公司青岛分公司

Please comment, thanks.

Regards,  
Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: amartinez@econocaribe.com



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## EXHIBIT 13

**\*\*reminder\*\***

From: Ariel Martinez  
Sent: Monday, July 15, 2013 9:21 AM  
To: 'George.Amador@maersk.com'  
Cc: John Kamada  
([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)<<mailto:jkamada@econocaribe.com>>)  
Subject: RE: Booking 560323561  
Importance: High

Good morning George,

Have you heard back from your overseas office? Please confirm the procedure/charges for the abandonment.

Regards,  
Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)<<mailto:amartinez@econocaribe.com>>  
[cid:image001.png@01CDAB96.2BE00C40]

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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\*** AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: Ariel Martinez  
Sent: Friday, July 12, 2013 1:16 PM  
To: 'George.Amador@maersk.com'  
Cc: John Kamada ([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)<<mailto:jkamada@econocaribe.com>>);  
'[Thomas.Daly@maersk.com](mailto:Thomas.Daly@maersk.com)'  
Subject: RE: Booking 560323561  
Importance: High

Hello George,

Per our telephone conversation just now, please abandon the containers. Please confirm all the charges that will be related to the abandonment.

Thanks!

Regards,

Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746

Cell 310.413.6707

Tel 310.817.2746 Fax 310.817.2751

Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com) <<mailto:amartinez@econocaribe.com>>  
[cid:image001.png@01CDAB96.2BE00C40]

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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\*** AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: Ariel Martinez

Sent: Thursday, July 11, 2013 1:14 PM

To: 'George.Amadore@maersk.com'

Cc: John Kamada

([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com) <<mailto:jkamada@econocaribe.com>>);

[Thomas.Daly@maersk.com](mailto:Thomas.Daly@maersk.com) <<mailto:Thomas.Daly@maersk.com>>

Subject: RE: Booking 560323561

**Reminder**

From: Ariel Martinez

Sent: Wednesday, July 10, 2013 4:37 PM

To: 'George.Amadore@maersk.com'

Cc: John Kamada

([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com) <<mailto:jkamada@econocaribe.com>>)

Subject: RE: Booking 560323561

Importance: High

George,

**The customer just confirmed they would like to abandon the containers. Please confirm the procedures and costs to do so.**

Regards,

Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746

Cell 310.413.6707

Tel 310.817.2746 Fax 310.817.2751

Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com) <<mailto:amartinez@econocaribe.com>>

EXHIBIT 14

[cid:image001.png@01CDAB96.28E00C40]

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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\*** AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: Ariel Martinez  
Sent: Wednesday, July 10, 2013 8:29 AM  
To: 'George.Amador@maersk.com'  
Cc: John Kamada  
([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)<<mailto:jkamada@econocaribe.com>>)  
Subject: RE: Booking 560323561  
Importance: High

**\*Reminder\***

From: Ariel Martinez  
Sent: Tuesday, July 09, 2013 1:33 PM  
To: 'George.Amador@maersk.com'  
Cc: John Kamada  
([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)<<mailto:jkamada@econocaribe.com>>);  
[Thomas.Daly@maersk.com](mailto:Thomas.Daly@maersk.com)<<mailto:Thomas.Daly@maersk.com>>  
Subject: RE: Booking 560323561  
Importance: High

George,

So what are our options here? Since Victory is not helping out, is our only option abandonment? Can we return the containers back to the US without does at an additional fee?

We need a breakdown of procedures and charges for the following options:

- Return back to the US (if possible)
- Abandon the cargo

Please revert the details asap.

Regards,

Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)<<mailto:amartinez@econocaribe.com>>

EXHIBIT 15

Joe Mirkovich

From: Melissa / Amoy Line <melissa@amoyline.com>  
Sent: Wednesday, July 17, 2013 5:13 PM  
To: Ariel Martinez; John Kamada  
Cc: Krystal / Amoyline  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi Ariel

If all waited for 90 days, there will be no possible way for anyone to pay these fees. please let me know and I hope MSK can respond faster?

thanks,

Melissa Chen

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

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649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com)

Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: Ariel Martinez [mailto:[amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)]  
Sent: Wednesday, July 17, 2013 4:29 PM  
To: Melissa / Amoy Line; John Kamada  
Cc: Krystal / Amoyline  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Noted Melissa, I will check and see but just note this looks like a China Customs regulation. It might be difficult to alter their rules/procedures.

Regards,  
Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)



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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\***

**AZ CFS-2220 E. Carson Street, Long Beach, CA 90810**

---

**From:** Melissa / Amoyline [mailto:melissa@amoyline.com]  
**Sent:** Wednesday, July 17, 2013 4:19 PM  
**To:** Ariel Martinez; John Kamada  
**Cc:** 'Krystal / Amoyline'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Hi Ariel

**I don't think we can wait for 90 days, can you check again please?**  
**If waited longer, the cost will go up sky high.**

Melissa Chen

---

**From:** Ariel Martinez [mailto:amartinez@econocaribe.com]  
**Sent:** Wednesday, July 17, 2013 4:10 PM  
**To:** Melissa / Amoy Line; John Kamada  
**Cc:** 'Krystal / Amoyline'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

**Noted, after the 90 days China customs will determine how they will proceed (either of the three options below).**

**I will follow up and keep you posted on any new development.**

Regards,  
**Ariel Martinez**

**Account Executive**  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)



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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\***

**AZ CFS-2220 E. Carson Street, Long Beach, CA 90810**

---

From: [Melissa / Amoy Line \[mailto:Melissa@AmoyLine.com\]](mailto:Melissa@AmoyLine.com)  
Sent: Wednesday, July 17, 2013 4:01 PM  
To: Ariel Martinez; John Kamada  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

**Dear Ariel**

this is the exact information we needed to hear from MSK since early June when I first contacted your office

It seems the shipment will need to be destroyed at port of destination, please advise the procedure ASAP!!

thank you,

Melissa Chen

### Amoy International LLC

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[China MOC License No.: MOC-NVO03586]  
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Website: [www.amoyline.com](http://www.amoyline.com)  
Please [click here](#) to download our ISF Form.

Save a tree, Please don't print this e-mail unless it's really necessary! :)

---

From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]  
Sent: Wednesday, July 17, 2013 3:54 PM  
To: Melissa / Amoy Line; John Kamada  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Good afternoon Melissa,

Per Maersk, the containers cannot be abandoned until after 90 days of arrival. Please see the details below:

As the cargo owner they absolutely can't abandon the containers, now they must find a new buyer at destination or arrange re-export. The detention charge till today is 39480 RMB. Please update below information to shipper. We suggest to them to take quick action to arrange their cargos, even if cargo will be returned to origin, auctioned or destroyed in the future due to no one pick up containers. All the fee will be charged to the shipper. If you need any help please contact us.

According to China Law, When shipment discharge goes past 90 days without pick up by CNEE, it will be considered as abandon cargo and can be disposed by China Customs.

Due to the cargo nature, China customs will need assistance from the China Inspection and Quarantine Authority to check the cargo first. Only with the result of the inspection, can customs decide what to do with the cargo. We heard usually there are 3 possible ways of finally handling the cargo:

1. Order return to origin (if cargo is found as prohibited or restricted to import to China).
2. Auction (if cargo is found allowed to import to China).
3. Destroy (if cargo is found not in good condition for return and auction).

Please let me know if you have any questions.

Regards,  
Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)



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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\***

**AZ CFS-2220 E. Carson Street, Long Beach, CA 90810**

---

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]  
Sent: Friday, July 12, 2013 12:26 PM  
To: John Kamada; Ariel Martinez  
Cc: 'Krystal / Amoyline'  
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi John

EXHIBIT 16

Thank you for the update Sir.

Hopefully, we can put this file to rest as quickly as possible. Please keep us posted.

John

From: [George.Amador@maersk.com](mailto:George.Amador@maersk.com) <<mailto:George.Amador@maersk.com>>  
[<mailto:George.Amador@maersk.com>]  
Sent: Thursday, July 18, 2013 12:53 PM  
To: John Kamada; Ariel Martinez  
Cc: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com) <<mailto:Barbara.Suarez@maersk.com>>  
Subject: RE: Booking 560323561

John, Just a heads up right now we are looking at 6,400 usd and we still have 2 more months to go. I have sent an email to our overseas office to see if we can jumpstart the abandonment process or if we have to wait for customs. This is in the effort of reducing the charges that are increasing day by day.

Brgds

George Amador

Care Business Partner

Maersk Line Inc.

790 N.W.107th Ave Suite 110

Miami, Florida 33172

Tel: (877)761-7930

[George.Amador@Maersk.com](mailto:George.Amador@Maersk.com) <<mailto:George.Amador@Maersk.com>>

[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>

From: Amador, George

Sent: Wednesday, July 17, 2013 13:36

To: 'John Kamada'; Ariel Martinez

Cc: Suarez, Barbara

Subject: RE: Booking 560323561

Hi John, Correct after 90 days it is considered abandoned but then of course come the additional charges as mentioned in correspondence which will be for the account of the shipper. There was no additional information from overseas.

Brgds

George Amador

Care Business Partner

Maersk Line Inc.

790 N.W.107th Ave Suite 110

Miami, Florida 33172

Tel: (877)761-7930

[George.Amador@Maersk.com](mailto:George.Amador@Maersk.com) <<mailto:George.Amador@Maersk.com>>

[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>

From: John Kamada [<mailto:john.kamada@econocaribe.com>]

Sent: Wednesday, July 17, 2013 10:03

To: Amador, George; Ariel Martinez

Subject: RE: Booking 560323561

Hi George,

If I read the below correctly, we only have to re-import if the cargo is found as prohibited. It should not be. We should be able to abandon, auction and/or destroy

cargo.

Is there more to the e-mail that they sent from overseas? I have been involved in a few cases of this nature and we have always been able to abandon at destination.

Please let me know and thanks.

John

From: George Amador <[George.Amador@maersk.com](mailto:George.Amador@maersk.com)> [mailto:George.Amador@maersk.com]

Sent: Wednesday, July 17, 2013 6:59 AM

To: Ariel Martinez

Cc: John Kamada

Subject: RE: Booking 560323561

Hi Ariel, Please see below from overseas.

As the cargo owner they absolutely can't abandon the containers, now they must find new buyer at destination or arrange re-export. The detention charge till today is \$9480 RMB. Please update below information to shipper. We suggest to them to take quick action to arrange their cargos, even if cargo will be returned to origin, auctioned or destroyed in the future due to no one pick up containers. All the fee will be charged to the shipper. If you need any help please contact us.

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Due to the cargo nature, China customs will need assistance from the China Inspection and Quarantine Authority to check the cargo first. Only with the result of the inspection, can customs decide what to do with the cargo. We heard usually there are 3 possible ways of finally handling the cargo:

1. Order return to origin (if cargo is found as prohibited or restricted to import to China).
2. Auction (if cargo is found allowed to import to China).
3. Destroy (if cargo is found not in good condition for return and auction).

Brgds

Brgds

George Amador

Care Business Partner

Maersk Line Inc.

790 N.W.107th Ave Suite 110

Miami, Florida 33172

Tel: (877)761-7930

[George.Amador@Maersk.com](mailto:George.Amador@Maersk.com) <<mailto:George.Amador@Maersk.com>>

[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>

From: Ariel Martinez [mailto:[amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)]

Sent: Tuesday, July 16, 2013 11:08

To: Amador, George

Cc: John Kamada

Subject: RE: Booking 560323561

Importance: High

EXHIBIT 17

Thank you.

From: Ariel Martinez  
Sent: Wednesday, September 04, 2013 8:43 AM  
To: [George.Amador@maersk.com](mailto:George.Amador@maersk.com)<<mailto:George.Amador@maersk.com>>  
Cc: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com)<<mailto:Barbara.Suarez@maersk.com>>; John Kamada  
Subject: RE: Booking 560323561  
Importance: High

**\*\*3rd Request\*\***

From: laxfcldept  
Sent: Wednesday, August 14, 2013 3:04 PM  
To: [George.Amador@maersk.com](mailto:George.Amador@maersk.com)<<mailto:George.Amador@maersk.com>>  
Cc: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com)<<mailto:Barbara.Suarez@maersk.com>>; John Kamada ([jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)<<mailto:jkamada@econocaribe.com>>)  
Subject: RE: Booking 560323561  
Importance: High

Good afternoon George,

Can you please confirm the status of this order? As of today how much is the storage and how many more days do we have until the 90 days are up?

Regards,  
Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)<<mailto:amartinez@econocaribe.com>>

[cid:image001.png@01CDA896.2BE00C40]

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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\*** AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: John Kamada  
Sent: Thursday, July 18, 2013 12:54 PM  
To: [George.Amador@maersk.com](mailto:George.Amador@maersk.com)<<mailto:George.Amador@maersk.com>>; Ariel Martinez  
Cc: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com)<<mailto:Barbara.Suarez@maersk.com>>  
Subject: RE: Booking 560323561

Thank you for the update Sir.

Hopefully, we can put this file to rest as quickly as possible. Please keep us posted.

John

From: [George.Amador@maersk.com](mailto:George.Amador@maersk.com) <<mailto:George.Amador@maersk.com>>  
[<mailto:George.Amador@maersk.com>]  
Sent: Thursday, July 18, 2013 12:53 PM  
To: John Kamada; Ariel Martinez  
Cc: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com) <<mailto:Barbara.Suarez@maersk.com>>  
Subject: RE: Booking 560323561

John, Just a heads up right now we are looking at 6,400 usd and we still have 2 more months to go. I have sent an email to our overseas office to see if we can jumpstart the abandonment process or if we have to wait for customs. This is in the effort of reducing the charges that are increasing day-by-day.

Brgds

George Amador  
Care Business Partner  
Maersk Line Inc.  
790 N.W.107th Ave Suite 110  
Miami, Florida 33172  
Tel: (877)761-7930  
[George.Amador@Maersk.com](mailto:George.Amador@Maersk.com) <<mailto:George.Amador@Maersk.com>>  
[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>  
From: Amador, George  
Sent: Wednesday, July 17, 2013 13:36  
To: 'John Kamada'; Ariel Martinez  
Cc: Suarez, Barbara  
Subject: RE: Booking 560323561

Hi John, Correct after 90 days it is considered abandoned but then of course come the additional charges as mentioned in correspondence which will be for the account of the shipper. There was no additional information from overseas.

Brgds

George Amador  
Care Business Partner  
Maersk Line Inc.  
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[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>  
From: John Kamada [<mailto:jkamada@econocaribe.com>]  
Sent: Wednesday, July 17, 2013 10:03  
To: Amador, George; Ariel Martinez  
Subject: RE: Booking 560323561

Hi George,

If I read the below correctly, we only have to re-import if the cargo is found as prohibited. It should not be. We should be able to abandon, auction and or destroy

EXHIBIT 18

Barbara Suarez  
 Customer Solutions Manager  
 Maersk, Inc.  
 790 N.W. 107th Avenue, Suite 110  
 Miami, Florida 33172  
 Tel: 305-485-3657  
 Fax: 305-223-6099  
[www.maerskline.com](http://www.maerskline.com)<<http://www.maerskline.com>>

From: John Kamada [<mailto:jkamada@econocaribe.com>]  
 Sent: Wednesday, September 04, 2013 12:55 PM  
 To: Suarez, Barbara; Ariel Martinez; Amador, George  
 Cc: Austin, Michael  
 Subject: RE: Booking 560323561

Thank you for your reply.  
 I will have the letter sent to you shortly.

From: Barbara.Suarez@maersk.com<<mailto:Barbara.Suarez@maersk.com>>  
 [mailto:Barbara.Suarez@maersk.com]  
 Sent: Wednesday, September 04, 2013 9:47 AM  
 To: John Kamada; Ariel Martinez;  
 George.Amador@maersk.com<<mailto:George.Amador@maersk.com>>  
 Cc: Michael.Austin@maersk.com<<mailto:Michael.Austin@maersk.com>>  
 Subject: RE: Booking 560323561

Hi John,

Per our last communication on this 7/30/13, you were going to put together a formal letter of abandonment so we can ask our colleagues in China present this to Customs and see if they're willing to speed up the 90 day timeline. I never received the letter.

You also noted at that time that your agent had confirmed the 90 day waiting period. This cargo discharged 6/17/13 so the waiting period should be coming up within next couple of weeks. We'll go out to MSK China and have them give us all costs to date associated w/this abandoned load.

Barbara Suarez  
 Customer Solutions Manager  
 Maersk, Inc.  
 790 N.W. 107th Avenue, Suite 110  
 Miami, Florida 33172  
 Tel: 305-485-3657  
 Fax: 305-223-6099  
[www.maerskline.com](http://www.maerskline.com)<<http://www.maerskline.com>>

From: John Kamada [<mailto:jkamada@econocaribe.com>]  
 Sent: Wednesday, September 04, 2013 11:59 AM  
 To: Ariel Martinez; Amador, George  
 Cc: Suarez, Barbara; Austin, Michael  
 Subject: RE: Booking 560323561

Adding Mike Austin.

Thank you.

From: Ariel Martínez

Sent: Wednesday, September 04, 2013 8:43 AM

To: George.Amador@maersk.com<mailto:George.Amador@maersk.com>

Cc: Barbara.Suarez@maersk.com<mailto:Barbara.Suarez@maersk.com>; John Kamada

Subject: RE: Booking 560323561

Importance: High

**\*\*3rd Request\*\***

From: laxfcldept

Sent: Wednesday, August 14, 2013 3:04 PM

To: George.Amador@maersk.com<mailto:George.Amador@maersk.com>

Cc: Barbara.Suarez@maersk.com<mailto:Barbara.Suarez@maersk.com>; John

Kamada (jkamada@econocaribe.com<mailto:jkamada@econocaribe.com>)

Subject: RE: Booking 560323561

Importance: High

Good afternoon George,

Can you please confirm the status of this order? As of today how much is the storage and how many more days do we have until the 90 days are up?

Regards,

Ariel Martínez

Account Executive

Econocaribe Consolidators, Inc.

637 EAST ALBERTONI ST. #104

CARSON CA 90746

Cell 310.413.6707

Tel 310.817.2746 Fax 310.817.2751

Email: amartinez@econocaribe.com<mailto:amartinez@econocaribe.com>

[cid:image001.png@01CDA896:2BE00C40]

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**\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\*** AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: John Kamada

Sent: Thursday, July 18, 2013 12:54 PM

To: George.Amador@maersk.com<mailto:George.Amador@maersk.com>; Ariel Martínez

Cc: Barbara.Suarez@maersk.com<mailto:Barbara.Suarez@maersk.com>

Subject: RE: Booking 560323561

Thank you for the update Sir.

Hopefully, we can put this file to rest as quickly as possible. Please keep us posted.

John

From: [George.Amador@maersk.com](mailto:George.Amador@maersk.com) <<mailto:George.Amador@maersk.com>>  
<<mailto:George.Amador@maersk.com>>  
Sent: Thursday, July 18, 2013 12:53 PM  
To: John Kamada; Ariel Martinez  
Cc: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com) <<mailto:Barbara.Suarez@maersk.com>>  
Subject: RE: Booking 560323561

John, Just a heads up right now we are looking at 6,400 usd and we still have 2 more months to go. I have sent an email to our overseas office to see if we can jumpstart the abandonment process or if we have to wait for customs. This is in the effort of reducing the charges that are increasing day by day.

Brgds  
George Amador  
Care Business Partner  
Maersk Line Inc.  
790 N.W.107th Ave Suite 110  
Miami, Florida 33172  
Tel: (877)761-7930  
[George.Amador@Maersk.com](mailto:George.Amador@Maersk.com) <<mailto:George.Amador@Maersk.com>>  
[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>  
From: Amador, George  
Sent: Wednesday, July 17, 2013 13:36  
To: 'John Kamada'; Ariel Martinez  
Cc: Suarez, Barbara  
Subject: RE: Booking 560323561

Hi John, Correct after 90 days it is considered abandoned but then of course come the additional charges as mentioned in correspondence which will be for the account of the shipper. There was no additional information from overseas.

Brgds  
George Amador  
Care Business Partner  
Maersk Line Inc.  
790 N.W.107th Ave Suite 110  
Miami, Florida 33172  
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[George.Amador@Maersk.com](mailto:George.Amador@Maersk.com) <<mailto:George.Amador@Maersk.com>>  
[www.maerskline.com](http://www.maerskline.com) <<http://www.maerskline.com>>  
From: John Kamada <<mailto:jkamada@econocaribe.com>>  
Sent: Wednesday, July 17, 2013 10:03  
To: Amador, George; Ariel Martinez  
Subject: RE: Booking 560323561

Hi George,  
If I read the below correctly, we only have to re-import if the cargo is found as prohibited. It should not be. We should be able to abandon, auction and or destroy

EXHIBIT 19

790 N.W. 107th Avenue, Suite 110  
Miami, Florida 33172  
Tel: 305-485-3657  
Fax: 305-223-6099  
[www.maerskline.com](http://www.maerskline.com)

From: John Kamada ([john.kamada@econocaribe.com](mailto:john.kamada@econocaribe.com))  
Sent: Tuesday, September 10, 2013 12:38 AM  
To: Suarez, Barbara; Ariel Martinez; Amador, George  
Cc: Austin, Michael  
Subject: RE: Booking 560323561

Good morning Barbara,  
Please find attached the abandonment letter. Anything you can do to help push this process along is greatly appreciated.

John Kamada

From: Barbara.Suarez@maersk.com (<mailto:Barbara.Suarez@maersk.com>)  
[<mailto:Barbara.Suarez@maersk.com>]  
Sent: Friday, September 06, 2013 14:09 PM  
To: John Kamada; Ariel Martinez;  
George.Amador@maersk.com (<mailto:George.Amador@maersk.com>)  
Cc: Michael.Austin@maersk.com (<mailto:Michael.Austin@maersk.com>)  
Subject: RE: Booking 560323561

Hi John,

Regret that this situation with abandoned shipment in China does not look very promising.

From everything we're being told, if this cargo is seized by customs once the 90 days after discharge timeline hits, then it could take China Customs an undetermined amount of time to decide on cargo disposition. MSK China is not able to give us a clear timeline of how long it may take.

They continue to tell us best option is for your agent in country to see about re-export options before this is seized. We've already advised that you don't have commercial documents to present to China Customs.

Latest communication from MSK China is telling us that if we go ahead and send them your formal letter of abandonment, they can "try and find a local agency or CMB in the market to ask about this issue."

The detention at destination thru 9/5/13 quoted is already at 171480.00 RMB and increases 1980 RMB per day.

Please get us a letter on Econocaribe letterhead and let's see if MSK China is able to make any progress.

Regards,

Barbara Suarez  
Customer Solutions Manager  
Maersk, Inc.  
790 N.W. 107th Avenue, Suite 110  
Miami, Florida 33172  
Tel: 305-485-3657  
Fax: 305-223-6099  
[www.maerskline.com](http://www.maerskline.com)<<http://www.maerskline.com>>

From: John Kamada [<mailto:jkamada@econocaribe.com>]  
Sent: Wednesday, September 04, 2013 12:55 PM  
To: Suarez, Barbara; Ariel Martinez; Amador, George  
Cc: Austin, Michael  
Subject: RE: Booking 560323561

Thank you for your reply.  
I will have the letter sent to you shortly.

From: [Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com)<<mailto:Barbara.Suarez@maersk.com>>  
[<mailto:Barbara.Suarez@maersk.com>]  
Sent: Wednesday, September 04, 2013 9:47 AM  
To: John Kamada; Ariel Martinez;  
[George.Amador@maersk.com](mailto:George.Amador@maersk.com)<<mailto:George.Amador@maersk.com>>  
Cc: [Michael.Austin@maersk.com](mailto:Michael.Austin@maersk.com)<<mailto:Michael.Austin@maersk.com>>  
Subject: RE: Booking 560323561

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You also noted at that time that your agent had confirmed the 90 day waiting period. This cargo discharged 6/17/13 so the waiting period should be coming up within next couple of weeks. We'll go out to MSK China and have them give us all costs to date associated w/this abandoned load.

Barbara Suarez  
Customer Solutions Manager  
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Tel: 305-485-3657  
Fax: 305-223-6099  
[www.maerskline.com](http://www.maerskline.com)<<http://www.maerskline.com>>

From: John Kamada [<mailto:jkamada@econocaribe.com>]  
Sent: Wednesday, September 04, 2013 11:59 AM  
To: Ariel Martinez; Amador, George  
Cc: Suarez, Barbara; Austin, Michael  
Subject: RE: Booking 560323561

Adding Mike Austin.

EXHIBIT 20

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com)

Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:[jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)]

Sent: Sunday, September 08, 2013 6:55 PM

To: Melissa // Amoy Line

Cc: Ariel Martinez

Subject: abandonment letter

Hi Melissa,

Please add the following clause to the letter. Once done, Maersk will start the process as 90 days is nearing soon.

Further, we waive any and all claims which we may have in relation to the Cargo and the above carriage contract against the Carrier, and hold the Carrier harmless from any claims, costs, expenses or liability in the event that a third party claims that it is entitled to the ownership of the cargo.

Please send this morning so we can get the ball rolling

Thanks

John Kamada

Director - West Coast USA Region

ECONOCARIBE CONSOLIDATORS, INC. - Carson, California

E-Mail: [jkamada@econocaribe.com](mailto:jkamada@econocaribe.com) Tel 866.326.6648 Ext 101 AOL IM: ecijkamada

Mobile 310.606.0611

\*\*\*\*Ask me about our LA "EXPORT" CFS change to AZ Warehouse; Effective June 17, 2013\*\*\*\*

<image001.png>

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Consolidators Inc.

Consolidators Inc.



14145 PROCTOR AVE. #14, CITY OF INDUSTRY, CA 91746  
TEL: (626) 855-3077 FAX: (626) 855-3078 :: [www.amoyline.com](http://www.amoyline.com)

Date: June 24<sup>th</sup>, 2013

LETTER OF ABANDONMENT

Bill of lading no : MAEU560323561  
Container NO. : PONU1750788 / MSKU6129259 / PONU1877619 /  
MRKU0232720  
Vessel Name and Voyage NO: CMA CGM VIVALDI V530W  
Port Of Loading : Oakland CA / United States  
Sail date : May 29<sup>th</sup>, 2013  
Port of Discharge: TianJin, China  
Shipper: Kumquat Tree Inc  
Description of goods: Auto Parts

Reason:

Shipper vanished about a week prior to vessel ETA to China. We tried contacting China buyer but found invalid phone # and company name. We went back looking for original seller (trading company) of the merchandise is a valid business but they refuse to give us any information about the freight and have avoided hundreds of calls / emails from our company.

Signed: 

Krystal Lazcano

Further, we waive any and all claims which we may have in relation to the Cargo and the above carriage contract against the Carrier, and hold the Carrier harmless from any claims, costs, expenses or liability in the event that third party claims to the ownership of the cargo.

AM-0110

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NVO03586]  
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)  
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008  
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)  
Ph: (347) 689-9255 Fax: (347) 689-9267  
Website: [www.amoyline.com](http://www.amoyline.com)

Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:[jkamada@econocaribe.com](mailto:jkamada@econocaribe.com)]

Sent: Sunday, September 08, 2013 6:55 PM

To: Melissa // Amoy Line

Cc: Ariel Martinez

Subject: abandonment letter

Hi Melissa,

Please add the following clause to the letter. Once done, Maersk will start the process as 90 days is nearing soon.

Further, we waive any and all claims which we may have in relation to the Cargo and the above carriage contract against the Carrier, and hold the Carrier harmless from any claims, costs, expenses or liability in the event that a third party claims that it is entitled to the ownership of the cargo.

Please send this morning so we can get the ball rolling

Thanks

John Kamada

Director – West Coast USA Region

ECONOCARIBE CONSOLIDATORS, INC. – Carson, California

E-Mail: [jkamada@econocaribe.com](mailto:jkamada@econocaribe.com) Tel 866.326.6648 Ext 101 AOL IM: ecijkamada

Mobile 310.606.0611

\*\*\*\*Ask me about our LA "EXPORT" CFS change to AZ Warehouse; Effective June 17, 2013\*\*\*\*

<image001.png>

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EXHIBIT 21

Subject: RE: Booking 560323561  
From: <amartinez@econocaribe.com>  
Date: 9/12/2013 5:59 PM  
To: <Barbara.Suarez@maersk.com>, <jkamada@econocaribe.com>  
CC: <George.Amador@maersk.com>, <Michael.Austin@maersk.com>

Barbara,

Please find the photo attached.

Regards,  
Ariel Martinez

Account Executive  
Econocaribe Consolidators, Inc.  
637 EAST ALBERTONI ST. #104  
CARSON CA 90746  
Cell 310.413.6707  
Tel 310.817.2746 Fax 310.817.2751  
Email: [amartinez@econocaribe.com](mailto:amartinez@econocaribe.com)

This email is solely for the intended recipient. If you are not the intended recipient, then any copying or redistributing of this email is strictly prohibited. If you received this message in error, then you should immediately notify the sender by telephone or return email and then delete it from your computer. Any views or opinions expressed in this email are not necessarily those of Econocaribe Consolidators, Inc. **\*\*ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013\*\***  
AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

-----Original Message-----

From: Barbara.Suarez@maersk.com [mailto:[Barbara.Suarez@maersk.com](mailto:Barbara.Suarez@maersk.com)]  
Sent: Thursday, September 12, 2013 2:14 PM  
To: John Kamada  
Cc: Ariel Martinez; [George.Amador@maersk.com](mailto:George.Amador@maersk.com); [Michael.Austin@maersk.com](mailto:Michael.Austin@maersk.com)  
Subject: RE: Booking 560323561

John,

Any chance at all that you have photos of what was loaded at the supplier? Without commercial documentation, this is getting very difficult to resolve.

Please advise.

Barbara Suarez  
Customer Solutions Manager  
Maersk, Inc.  
790 N.W. 107th Avenue, Suite 110  
Miami, Florida 33172  
Tel: 305-485-3657  
Fax: 305-223-6099

EXHIBIT 22

---

**From:** John Kamada [mailto:jkamada@econocaribe.com]  
**Sent:** Tuesday, August 20, 2013 10:34 AM  
**To:** Melissa / Amoy Line; Ariel Martinez  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Received.  
Thanks

---

**From:** Melissa / Amoy Line [mailto:melissa@amoyline.com]  
**Sent:** Tuesday, August 20, 2013 10:31 AM  
**To:** John Kamada; Ariel Martinez  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Hi John

Attached is the picture of the tire bales. Supplier said they did not charge for the bales, therefore the current cost for these containers are just the trucking and ocean freight.

I hope this information can be helpful.

thank you,

Melissa Chen

---

## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]  
[China MOC License No.: MOC-NVO03586]  
14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)  
Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008  
649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)  
Ph: (347) 689-9255 Fax: (347) 689-9267  
Website: [www.amoyline.com](http://www.amoyline.com)  
Please [click](#) here to download our ISF Form.

---

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---

**From:** John Kamada [mailto:jkamada@econocaribe.com]  
**Sent:** Wednesday, July 10, 2013 9:59 AM  
**To:** Melissa / Amoy Line; Ariel Martinez  
**Cc:** 'Krystal / Amoyline'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Ok.  
The final decision is yours.

You can abandon the cargo for sale at destination with the understanding that all charges (ocean freight, de-vanning, storage etc...) not covered by the sale of goods will be to your account. We do have your abandonment letter but we needed to get Maersk's stance on the cargo before we could proceed.

Or

## EXHIBIT 23

**Joe Mirkovich**

---

**From:** Melissa / Amoy Line <melissa@amoyline.com>  
**Sent:** Monday, September 16, 2013 9:11 AM  
**To:** 'laxfcldept'  
**Subject:** FW: New Booking from Oakland to Xingang - 04-439024  
**Attachments:** XNG BKG.xlsx; XNG SLI.xlsx

---

**From:** Melissa / Amoy Line [mailto:melissa@amoyline.com]  
**Sent:** Sunday, September 15, 2013 10:46 PM  
**To:** 'laxfcldept'  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024

Hi Ariel

~~Sorry missed your email last Friday. please see attached provided by shipper.~~

**Melissa Chen**

---

## **Amoy International LLC**

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586]

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Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com)

Please [click here](#) to download our ISF Form.

~~Save a tree. Please don't print this e-mail unless it's really necessary! :)~~

---

**From:** laxfcldept [mailto:laxfcldept@econocaribe.com]  
**Sent:** Friday, September 13, 2013 1:59 PM  
**To:** Melissa / Amoy Line  
**Subject:** RE: New Booking from Oakland to Xingang - 04-439024  
**Importance:** High

Hello Melissa,

~~Maersk is asking for the name and information of the actual shipper that booked this with you.~~

~~Can you please provide?~~

■ Regards,  
Ariel Martinez

EXHIBIT 24

7/18/2014

The Mooney Law Firm, LLC Mail - FW: ECCI BKG# LAC-CNXXGG-04-439024 CARRIER BKG# 560323561

~~~~~  
A Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: Elizabeth Sanchez [mailto:esanchez@econocaribe.com]

Sent: Tuesday, April 15, 2014 10:55 AM

To: krystal@amoyline.com

Cc: John Kamada; Lygia Reclioli-Bratton

Subject: ECCI BKG# LAC-CNXXGG-04-439024 CARRIER BKG# 560323561

Dear Krystal,

I am sending you this email on behalf of John Kamada, he is currently traveling and wanted to ensure that you received an update on your bkg. The below message was sent from Maersk to John directly.

Below is complete cost picture from agent in China who can help with return shipment, or you can nominate your own agent in China to coordinate the re-export. The costs quoted below are good thru 5/10/14 only. Storage charges beyond that day will have to be re-calculated.

China Customs has not imposed a fine yet; however, Maersk China recommends that return cargo process is initiated right away to avoid possible fines down the road.

As FYI, we asked whether China Customs requires return to original load port Oakland but were told they don't care if it returns to Oakland or any other port.

Return ocean freight is not included in below calculation and would apply per your

Econo000131

Exhibit 24-1

PACEB OTI tier matrix.

The export charge covers cargo inspection fee, seal no. fee, tally fee, port cut-off fee, container move, and shift fee.

Charge name	Amount(USD)
Depot cost:	1164
Customs warehouse cost(storage over 238days):	7107
Return process cost	1867
Export charge	682
Overdue customs examine and approve charge	1284
Import agent charge	334
Customs declaration charge	167

Agent in China:

COMPANY:CHINA OCEAN SHIPPING AGENCY TIANJIN

BANK:BANK OF CHINA TIANJIN BINHAI BRANCH XINGANG SUB-BRANCH.

USD A/C No. 281760053909

SWIFT CODE: BKCHCNBJ21A

ADDRESS OF BANK: No.572 XINGANG ROAD TANGGU DIST

7/18/2014

The Mooney Law Firm, LLC Mail - FW: ECCI BKG# LAC-CNXXGG-04-439024 CARRIER BKG# 560323561

TIANJIN CHINA

Cost amount : USD 12595

VAT: 6.83%

Total remit amount: USD13456

Please review and let us know how you would like to proceed. If you want our agent to assist with return shipment, please note they require direct payment guarantee to initiate process and stop the clock in China.

Please let us know how you would like us to proceed or if you have any other questions.

Best Regards,

Liz Sanchez

Regional Business Development

West Coast USA

ECONOCARIBE CONSOLIDATORS - Los Angeles

Tel 310.817.2746 -- Fax 310.817.2751

Cell 562.445.7574 -- AOLIM. eciesanchez

Econo000133

Exhibit 24-3

EXHIBIT 25

Melissa Chen

~~~~~

## **Amoy International LLC**

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

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649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com) skype: amoyline

**Please click here to download our ISF Form.**

~~~~~

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From: John Kamada [mailto:jkamada@econocaribe.com]

Sent: Tuesday, April 22, 2014 7:44 AM

To: Melissa / Amoy Line; Elizabeth Sanchez

Cc: Lygia Reciola-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi Melissa,

Maersk advises that because the cargo was mis-declared, this is their only option.

7/18/2014

The Mooney Law Firm, LLC Mail - FW: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

I received an e-mail from them this morning as follows:

We are being pressed for a response as to how you and your customer want to proceed. We have told them you are presenting options to your customer but afraid if we don't move on their offer/storage, costs will escalate.

Will your agent handle re-export or will you be asking China Ocean Shipping (recommended by Maersk) to handle on your behalf?

Thanks/Regards,

May I suggest you proceed ASAP and accept the charges. we can still try to mitigate the overall charges but unfortunately, China Customs is now pushing Maersk.

Please let me know.

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]

Sent: Thursday, April 17, 2014 2:12 PM

To: John Kamada; Elizabeth Sanchez

Cc: Lygia Reciola-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

hi John

Once abandonment letter was sign to carrier, they usually don't come back to ask to take the container back. can you please check again?

Econo000127

Exhibit 25-2

I am checking with Customs about importing, because we don't have anyone would claim the cargo, so even returns could be another problem too.

Melissa Chen

~~~~~

## **Amoy International LLC**

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

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Website [www.amoyline.com](http://www.amoyline.com) skype: amoyline

Please click [here](#) to download our ISF Form.

~~~~~

♻️ Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [mailto:jkamada@econocaribe.com]

Sent: Wednesday, April 16, 2014 9:55 PM

To: Melissa / Amoy Line; Elizabeth Sanchez

Cc: Lygia Recio-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Econo000128

Hi Melissa,

We have asked Maersk numerous times to push customs in China but unfortunately, they move at their own slow pace.

They would like us to return the cargo back to any US port. The sooner we can get it moving, the better. I will ask them again to try and mitigate the costs.

Please let me know how to proceed as this is ultimately your decision on where we go from here.

John

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]

Sent: Tuesday, April 15, 2014 11:24 AM

To: Elizabeth Sanchez

Cc: John Kamada; Lygia Reciola-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi Elizabeth

Krystal is no longer with the company

For below case, please help us to negotiate the costs. the shipper vanished and we had hard time getting original supplier to accept the loads back. I have hired collection agency, attorney and all, but none of these people could be found.

7/18/2014

The Mooney Law Firm, LLC Mail - FW: ECCI BKG# LAG-CNXXG-04-439024 CARRIER BKG# 660323561

It has been long time we waited to hear from MSK about this freight if any suggestions you can help to come up and take care of this problem, please let me know. I want to solve this problem soonest possible.

the total cost listed below is really expensive and I can't afford to pay them. I know is not related to you and to the case, but Krystal has caused big problems with other shipments too and we have lost way too much money in past 2 years, law suits, penalties and etc.

Please help me to negotiate and I will again look for people in US can accept the container back.

thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

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Website: www.amoyline.com skype: amoyline

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ECON0000130

Exhibit 25-5

EXHIBIT 26

After receive payment, we will arrange return shipment immediately.

Please let me know.

John

From: John Kamada

Sent: Tuesday, April 22, 2014 3:36 PM

To: Melissa / Amoy Line; Elizabeth Sanchez

Cc: Lygia Reciola-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi Melissa,

Maersk is ok with showing this customer as the importer on the b/l. Just note that the charges need to be paid up front PRIOR to the cargo returning to Los Angeles. Will this customer be responsible for clearing the freight?

Please let me know if you would like to proceed. Maersk is trying one more time to negotiate the charges.

John

From: Melissa // Amoy Line [mailto:melissa@amoyline.com]
Sent: Tuesday, April 22, 2014 3:21 PM
To: John Kamada; Elizabeth Sanchez
Cc: Lygia Recio-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

The problem is bringing it back to US, we don't have importer for this container. They took too long to get back to us.

We have this company as original seller to the people who shipped with us, if MSK is to return, can they list them as importer on MBL?

Global Waste Management Inc.

214 Shaw Road, Unit 9
S. San Francisco, CA 94080
Phone: 415-264-1026
Fax: 650-588-4496

Daniel Akhrotmsev - CEO/President
Phone: 415-264-1026
Email: Daniel@globalwastemanagement.net

Eduard Klinkovich - CFO/VP
Phone: 415-710-5710
Email: Erik@globalwastemanagement.net

EXHIBIT 27

Joe Mirkovich

From: Melissa / Amoy Line <melissa@amoyline.com>
Sent: Tuesday, May 13, 2014 4:48 PM
To: 'John Kamada'
Cc: 'Lygia RecioIi-Bratton'
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

that is fine. whatever the information they need please let me know. thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NV003586] [US DOT : MC-859087]
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649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)
Ph: (347) 689-9235 Fax: (347) 689-9267
Website: www.amoyline.com skype: amoyline
Please [click here](#) to download our ISF Form.

♻️ **Save a tree. Please don't print this e-mail unless it's really necessary! :)**

From: John Kamada [mailto:jkamada@econocaribe.com]
Sent: Tuesday, May 13, 2014 4:45 PM
To: Melissa / Amoy Line
Cc: Lygia RecioIi-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi Melissa,

I am not offended by your e-mail. This is a business issue that is very unfortunate for us all, not just for you. I have tried my best to push this mitigation process. At this point, I will leave it to corporate to proceed.

Thank you,

John

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Tuesday, May 13, 2014 4:35 PM
To: John Kamada
Cc: Lygia RecioIi-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

Sorry if my email has offended you.

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

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Ph (347) 689-9255 Fax: (347) 689-9267

Website: www.amoyline.com skype: amoyline

Please [click here](#) to download our ISF Form.

♻️ Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [<mailto:jkamada@econocaribe.com>]

Sent: Tuesday, May 13, 2014 3:10 PM

To: Melissa / Amoy Line

Cc: Lygia Recio-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hello Melissa,

Thank you for your message below. I understand your comments but don't necessarily agree with them. I tried as best I could to negotiate with Maersk on your behalf. If you feel that 171k to 67k (over a 60% reduction) is poor negotiating, I am sorry.

The bottom line here is that Amoy mis-declared cargo and shipped it under an Econocaribe and Maersk b/l. As the end shipper, Amoy is responsible regardless of any other internal issues you may have had. It makes no difference how big or small any of the parties involved are.

I will advise Maersk of your decision and this will then be out of my hands. I am sure you will be contacted for pending legal matters soon.

Regards,

John

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]

Sent: Tuesday, May 13, 2014 12:24 PM

To: John Kamada

Cc: Lygia Recio-Bratton

Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

Sorry that I will be very blunt in this email.

I don't know how you have communicated with carrier. By my guess you talked to them about reducing costs and to talking the containers back?

I wouldn't say you are not helping, however I am afraid we are in a very weak position if continuing the negotiation like the way is going. First of all, I want you to understand that, Amoy is victim in this case, and I have all the proof to show that we did follow the procedure by gathering cargo information prior to shipping and we did try finding the shipper to solving this problem soonest we found out the problem. We have already lost a lot on all transportation costs for these containers. Maersk is the world largest company, EconoCaribe is also a large corporation, but Amoy is not. You can represent Econo to mitigate costs from \$171k + return to \$70k + return, it might seem good, but. This is actually a poor negotiation. And to be honest, a small forwarder like us cannot afford the loss and we just simply cannot pay.

I will not take the containers back. carriers have their solutions for this kind of situation and I suggest you not to agree again for taking them back.

In this type of nightmare situation, carriers normally sends the threat notice, followed by attorney letters, followed by attorney harassment calls, followed by for a long time... but maybe we can avoid all these... And we just have to find our best negotiation key to play forward. I presented to carrier our good intention but also showed them that, if they insist, things would go nowhere and they can't get anything out of us. Carriers will eventually keeping the containers and billing a very small invoice to mitigate the problem. I mean, a very small invoice.

I am in the out of office, please call my cell phone directly if you need to talk to me. 626-616-2008

regards

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
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Website: www.amoyline.com skype: amoyline
Please [click here](#) to download our ISF Form.

Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [<mailto:jkamada@econocaribe.com>]
Sent: Monday, May 12, 2014 7:35 AM
To: Melissa / Amoy Line
Cc: Lygia Reciola-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi Melissa,
Please see below response from Maersk.

Abandonment letter does not release shipper of liability. We requested the formal abandonment letter to see if we could put pressure on China Customs to order disposition. This cargo was mis-declared as 'auto parts' when in fact it

was 'used tires' which is a restricted commodity into China and one which is heavily fined. Maersk did not sit on this. We kept communication flow going asking Maersk China to intervene but it is not uncommon for China Customs to hold onto cargo, sometimes over a year, to render a decision. At that time we made it known that best option was to find a new consignee or start re-export, which is what we're doing now.

~~As you know, the initial D&D (excluding re-export charges) quoted by Maersk China was \$171K and we went out and obtained mitigated amount of D&D \$50K plus the re-export charges, total all charges \$67K. As per our discussion on same, this amount fell within the numbers you and I discussed.~~ While understand that there are several relationships involved in this transaction, Econocaribe is Maersk B/L shipper and ultimately will be held liable for all charges. Any further delays will cause charges to continue to creep up.

Please let me know if you would like to proceed and pay the charges or if I should tell Maersk you cannot pay?

Sorry for this.

John

From: Melissa / Amoy Line [mailto:melissa@amoyline.com]
Sent: Friday, May 09, 2014 1:22 PM
To: John Kamada
Cc: Lygia Recio-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

Being victim of the case, I fully understand this shipment has also caused Maersk lots of problems. We've tried everything we could in the very beginning when we suspected something wasn't going right, from tracing back to trucker to vendor and hiring attorney after the shipper, but we weren't able to get any help and we have completely lost contact with shipper.

I have just took care of lawsuits with MSC and Zim due to previous huge losses with similar problem caused by the same sales. We are struggling to getting thru recoveries at moment. When the abandonment letter was signed to Maersk last year, I was no longer expecting to receive emails instructing to taking back these containers. Maersk has these containers since last year, they were aware of the situation before even containers arrive to port, and it is up to them for letting the containers sitting at port or solving this problem sooner.

Unfortunately, I'm unable to come up with the money to cover these storages, nor taking the containers back after all these time. Please kindly advise, if any other way we can work this through.

Thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]
[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]
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649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)
Ph: (347) 689-9255 Fax: (347) 689-9267

EXHIBIT 28

10/9/2014

FW: Booking 560323561 4 X 40's Used Tires - nmooney@customscout.com - The Mooney Law Firm, LLC Mail

To: Suarez, Barbara
Cc: Austin, Michael; Amador, George; Francey, Donald N
Subject: RE: Booking 560323561 4 X 40's Used Tires

Thank you Barbara,
I understand completely and have already gotten Miami Corporate involved.

Appreciate all your help and follow up.

John

From: Barbara.Suarez@maersk.com [mailto:Barbara.Suarez@maersk.com]
Sent: Wednesday, May 14, 2014 7:59 AM
To: John Kamada
Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com
Subject: RE: Booking 560323561 4 X 40's Used Tires

Good morning John,

Maersk is not the bad guy here. In fact, your customer declared auto parts and shipped a restricted commodity to China. Of course, they choose to ignore that this is root cause of cargo sitting and facing re-export. Actually when this situation first arose, the options provided to Econocaribe were to find a new buyer or re-export but Econocaribe was not able to provide required commercial docs to initiate this process, prior to Customs seizure of the cargo.

As per North China local customs regulations, Customs retains the authority to order disposition of non-claimed cargo. Even when we have both consignee and shipper's abandonment letter, the cargo remains under control of Customs. We were told and communicated that there is no clear timeline of how long Customs will take to render an approval for next move (disposal, return or auction).

Regret this will pass to Legal Recovery on our side as any further mitigation is out of my hands, but please keep in mind that your customer is not a party to our B/L and shipper is ultimately liable for all charges under our Maersk Bill of Lading.

Requesting all parties get on a call to discuss next step.

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172
Tel: 305-485-3657
Fax: 305-223-6099

From: John Kamada [mailto:jkamada@econocaribe.com]
Sent: Tuesday, May 13, 2014 6:20 PM
To: Suarez, Barbara
Cc: Austin, Michael; Amador, George; Francey, Donald N
Subject: RE: Booking 560323561 4 X 40's Used Tires

Hi Barbara,
Here is my customer's final response.
Sorry that I will be very blunt in this email.
I don't know how you have communicated with carrier. By my guess you talked to them about reducing costs and to talking the containers back?
I wouldn't say you are not helping, however I am afraid we are in a very weak position if continuing the negotiation like the way is going. First of all, I want you to understand that, Amoy

https://mail.google.com/mail/u/1/#advanced-search/from:bgoldenberg%40econocaribe.com&subse=all&has=emails&with=3d&sizeoperator=s_sl&... 5/10
Econocaribe

10/9/2014

FW: Booking 560323561 4 X 40's Used Tires - nmooney@customscourt.com - The Mooney Law Firm, LLC Mail

is victim in this case, and I have all the proof to show that we did follow the procedure by gathering cargo information prior to shipping and we did try finding the shipper to solving this problem soonest we found out the problem. We have already lost a lot on all transportation costs for these containers. Maersk is the world largest company, EconoCaribe is also a large corporation, but Amoy is not. You can represent Econo to mitigate costs from \$171k + return to \$70k + return, it might seem good, but. This is actually a poor negotiation. And to be honest, a small forwarder like us cannot afford the loss and we just simply cannot pay.

I will not take the containers back. carriers have their solutions for this kind of situation and I suggest you not to agree again for taking them back.

In this type of nightmare situation, carriers normally sends the threat notice, followed by attorney letters, followed by attorney harassment calls, followed by for a long time... but maybe we can avoid all these...

And we just have to find our best negotiation key to play forward. I presented to carrier our good intention but also showed them that, if they insist, things would go nowhere and they can't get anything out of us. Carriers will eventually keeping the containers and billing a very small invoice to mitigate the problem. I mean, a very small invoice.

Im not sure what the normal legal process is but I guess we will have to go through the motions here. I am sorry, they simply wont pay anything.

john

From: Barbara.Suarez@maersk.com [mailto:Barbara.Suarez@maersk.com]

Sent: Monday, May 12, 2014 6:59 AM

To: John Kamada

Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com

Subject: RE: Booking 560323561 4 X 40's Used Tires

John,

Abandonment letter does not release shipper of liability. We requested the formal abandonment letter to see if we could put pressure on China Customs to order disposition. This cargo was mis-declared as 'auto parts' when in fact it was 'used tires' which is a restricted commodity into China and one which is heavily fined. Maersk did not sit on this. We kept communication flow going asking Maersk China to intervene but it is not uncommon for China Customs to hold onto cargo, sometimes over a year, to render a decision. At that time we made it known that best option was to find a new consignee or start re-export, which is what we're doing now.

As you know, the initial D&D (excluding re-export charges) quoted by Maersk China was \$171K and we went out and obtained mitigated amount of D&D \$50K plus the re-export charges, total all charges \$67K. As per our discussion on same, this amount fell within the numbers you and I discussed. While understand that there are several relationships involved in this transaction, Econocaribe is Maersk B/L shipper and ultimately will be held liable for all charges. Any further delays will cause charges to continue to creep up.

Regards,

Barbara

From: John Kamada [mailto:jkamada@econocaribe.com]

Sent: Friday, May 09, 2014 11:09 PM

To: Suarez, Barbara

Cc: Austin, Michael; Amador, George

Subject: Re: Booking 560323561 4 X 40's Used Tires

https://mail.google.com/mail/u/1/#advanced-search/from=bgoldenberg%40econocaribe.com&subset=all&has=emails&within=3d&sizeoperator=s_sl&... 6/10

Econo000187

EXHIBIT 29

10/9/2014

FW: Booking 560323561 4 X 40's Used Tires - nmooney@customscowf.com - The Mooney Law Firm, LLC Mail

From: Barbara.Suarez@maersk.com [mailto:Barbara.Suarez@maersk.com]
Sent: Monday, June 09, 2014 10:53 AM
To: Bob Goldenberg; John Kamada
Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francev@maersk.com; Ana.Cohen@maersk.com
Subject: RE: Booking 560323561 4 X 40's Used Tires

Bob,

Maersk China has advised that the re-export charges of \$14,504 quoted are no longer valid because we have not initiated re-export process which takes time to coordinate and doubtful this can be completed now by the 6-30 deadline. Cargo moved under Seaway Bill of Lading and our Carrier obligation is to deliver cargo in accordance with named consignee's instructions. In this case, every attempt was made to contact BL consignee who said on several occasions that this was not their cargo and that is when we reverted back to Econocaribe to find a new buyer or re-export.

~~China Customs controls and decides when disposal can be arranged and for that reason, we don't have a final invoice from Customs. On that basis, Maersk China chose to petition Customs to allow re-export process to mitigate our exposure and costs, rather than let cargo continue to sit while Customs decides when to order disposition. If we let cargo continue to sit, until such a time that Customs actions, then 'yes', we'll be able to provide documentation, but we have no idea when that will be and cargo is on the clock for storage and Maersk D&D.~~

As you know, per BL and service contract terms, the shipper is responsible for and warrants its compliance with all applicable laws, rules and regulations, including, but not limited to, the export laws and government regulations of any country to/from or through which the Goods may be carried.

We have been at this for a while now and unless re-export charges are guaranteed, Maersk China will not initiate re-export of these containers. We were able to mitigate the D&D down significantly but afraid these costs will continue to rise while we wait for approval and guarantee to proceed.

Regards,

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172
Tel: 305-485-3657
Fax: 305-223-6099

EXHIBIT 30

10/9/2014

FW: Booking 560323561 4 X 40's Used Tires - nmooney@customsout.com - The Mooney Law Firm, LLC Mail

From: Barbara.Suarez@maersk.com [mailto:Barbara.Suarez@maersk.com]
Sent: Wednesday, June 11, 2014 3:37 PM
To: Bob Goldenberg; John Kamada
Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com; Ana.Cohen@maersk.com
Subject: RE: Booking 560323561 4 X 40's Used Tires

Hi Bob,

~~Maersk petitioned disposal from China Customs back in March, 2014, and so far no feedback.~~

Containers remain at customs warehouse on terminal. Disposal is controlled by China Customs and not the carrier. Maersk China reports that Customs will not issue any type of invoice to the carrier, until they release a return order and decide to dispose or re-export. This is reason Maersk took the lead to arrange re-export and minimize customs fines and storage, which continues to accrue daily.

Now the previous out of pocket return costs we were quoted in April are no longer valid because we China agent does not have time to effect re-export by the 6/30 deadline.
Please see updated costs.

You may want to also discuss with your agent in China to see if they can mitigate these re-export charges which being told are outside of our control.

Detention: USD50,000

Out of Pocket Return Cost: USD 21,754

Charge name	Amount(USD)
Depot cost:	1233
Customs warehouse cost:	9202
Return process cost :	3020
Export charge	729
Overdue customs examine and approve charge:	1372
Import agent charge	357
Customs declaration charge	499
Customs fine	5342
Total amount	21754

Demurrage: USD3141

Total amount USD74895.

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172
Tel: 305-485-3657
Fax: 305-223-6099

From: Bob Goldenberg [mailto:bgoldenberg@econocaribe.com]
Sent: Tuesday, June 10, 2014 4:34 PM
To: Suarez, Barbara; John Kamada
Cc: Austin, Michael; Amador, George; Francey, Donald N; Cohen, Ana

https://mail.google.com/mail/u/1/#advanced-search?from=bgoldenberg%40econocaribe.com&subse=all&has=emails&within=3d&sizeoperator=s_sl&si... 1/2
Econocaribe 196

EXHIBIT 31



Chicago Division

Home • Chicago • Press Releases • 2013 • Cary Business Owner Pleads Guilty to \$1 Million International Fraud Scheme

Cary Business Owner Pleads Guilty to \$1 Million International Fraud Scheme

U.S. Attorney's Office
May 13, 2013

Northern District of Illinois
(312) 353-5300

ROCKFORD—A Cary, Illinois business owner, pleaded guilty to wire fraud today in federal court before U.S. District Judge Frederick J. Kappala. Clare Thomas Anderson, 47, who owned and operated multiple businesses in Cary, Illinois, and Florida, admitted that between April 2009 and January 2013, he schemed to defraud more than \$1 million from more than 10 victims that did business with the companies he operated.

According to the written plea agreement, the businesses Anderson owned and operated were Certifibre LLC; Anderson International Global LLC, which had an assumed name of Worldwide Paper Company Inc.; Ameriann Simplus Supply; Southernmost Exports LLC; Southernmost Holdings LTD; and Sea Consulting LLC. Through these businesses, Anderson contracted to sell wood pulp and other raw materials to manufacturers, brokers, and suppliers, which were usually located in foreign countries.

Anderson obtained payments from his customers before the shipments arrived at their destinations. Often, the customers obtained Letters of Credit from their banks in order to pay for the shipments in advance. Anderson admitted that he caused payments to be disbursed under these Letters of Credit to bank accounts he controlled by creating and presenting fraudulent Bills of Lading, Certificates of Origin, and packing lists. These documents falsely represented that the agreed upon quantity and quality of materials had been shipped.

Anderson admitted that instead of shipping the wood pulp or other raw materials he had agreed to sell, on various occasions he shipped worthless scrap materials to his foreign customers. When the customers called him to complain about the worthless scrap materials they had received, Anderson falsely told them that the scrap materials were intended for another customer in a different country.

Anderson further admitted that on some occasions, instead of shipping the agreed upon weights and volume of wood pulp or other raw materials, he instead shipped substantially smaller amounts of wood pulp or other raw materials. When the customers called and complained about the short shipments, Anderson falsely told them that short shipments were caused by clerical errors.

Anderson acknowledged that, in order to maximize the profits from his scheme to defraud, he often failed to pay for the materials he obtained and for the freight shipping charges. Anderson also admitted that he spent the funds that his customers sent to him on his own personal expenses.

As he acknowledged in the plea agreement, on a few occasions, Anderson refunded some money to his victims in order to avoid detection of his scheme. Anderson paid these refunds only after the victims contacted, or threatened to contact, federal law enforcement officials. Anderson admitted that he obtained the funds used to pay these refunds by defrauding additional customers.

Anderson is scheduled to be sentenced on August 22, 2013, at 2:30 p.m. Wire fraud carries a maximum penalty of up to 20 years in prison, a term of up to three years of supervised release following imprisonment, a \$250,000 fine, and mandatory restitution. The court may also impose a fine totaling twice the loss to any victim or twice the gain to the defendant, whichever is greater. The actual sentence will be determined by the United States District Court, guided by the advisory United States Sentencing Guidelines.

The guilty plea was announced by Gary S. Shapiro, United States Attorney for the Northern District of Illinois, and Cory B. Nelson, Special Agent in Charge of the Chicago Office of the Federal Bureau of Investigation.

The government is being represented by Assistant U.S. Attorney Scott A. Verseman.

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EXHIBIT 32

Joe Mirkovich

From: Krystal Lazcano <krystal.amoy@gmail.com>
Sent: Friday, January 16, 2015 10:35 AM
To: Melissa / Amoyline
Subject: Fwd: From Oakland to Xingang AL1305120EX
Attachments: PL & CI.xls

----- Forwarded message -----

From: John chen <kumquattreeinc@gmail.com>
Date: Fri, May 24, 2013 at 10:56 AM
Subject: Re: From Oakland to Xingang AL1305120EX
To: Gaby / Amoyline <gaby@amoyline.com>
Cc: Krystal / Amoyline <krystal@amoyline.com>

Hi Krystal,

Please see container number, seal number, packing list, commercial invoice and ITN number:

PONU1750788 2300720
MSKU6129259 2300719
PONU1877617 2300718
MRKU0232720 2300717

AES ITN : X20130524032027

From: John chen [mailto:kumquattreeinc@gmail.com]
Sent: Wednesday, May 22, 2013 9:28 AM
To: Krystal / Amoyline
Cc: GABY@amoyline.com; Melissa / Amoy Line
Subject: Re: From Oakland to Xingang

Hi Crystal,

the driver said the booking was booked for 40'HQ, and they dont have any equipment at port, can you change it to 40' standard?

Thanks

On Mon, May 20, 2013 at 12:13 PM, Krystal / Amoyline <krystal@amoyline.com> wrote:

Hello John,

Please see the booking details below:

Maersk Booking# 560323561

CMA CGM VIVALDI V.530W

ERD 05/20

C/O 05/24

ETD 05/29

ETA 06/17

Please let me know if you have any questions, thank you

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 26th, 2010!
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~~~~~  
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Ph: (626) 855-3077 Fax: (626) 855-3078

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com) E: [krystal@amoyline.com](mailto:krystal@amoyline.com)

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Website: [www.amoyline.com](http://www.amoyline.com)

~~~~~  
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From: Krystal / Amoyline [mailto:krystal@amoyline.com]
Sent: Monday, May 20, 2013 11:53 AM
To: 'John chen'
Cc: 'GABY@AMOYLINE.COM'; 'Melissa / Amoy Line'
Subject: RE: From Oakland to Xingang

Hi John,

Please note I made a booking request for 4 containers this week.

Please send me the packing list and invoice and soon as possible for this shipment.

I will check with the carrier for the coming weeks availability with equipment.

Thank You

Krystal Lee

Sales & Marketing

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~~~~~  
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Website: www.amoyline.com  
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From: John chen [<mailto:kumquattreeinc@gmail.com>]
Sent: Monday, May 20, 2013 11:43 AM
To: Krystal / Amoyline
Subject: Re:

Please book 40' standard. Thank you.

Can you reserve some booking for me for next week and the week after? Oakland has very tight booking and equipment.

Please reserve 5x40' for next week and the week after.

On Mon, May 20, 2013 at 11:36 AM, Krystal / Amoyline <krystal@amoyline.com> wrote:

Hi John,

I will place booking for 4x40'GP containers for this weeks cut off.

Please confirm container size for booking, thank you

Thank You

Krystal Lee

Sales & Marketing

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~~~~~  
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From: John chen [mailto:kumquattreeinc@gmail.com]
Sent: Monday, May 20, 2013 11:30 AM
To: Krystal / Amoyline
Subject: Re:

Hi Krystal,

I can use 4 containers this week. Can you send me booking confirmation?

Thanks

John

On Mon, May 20, 2013 at 11:19 AM, Krystal / Amoyline <krystal@amoyline.com> wrote:

Hi John,

The cut off is the 24th this Friday

Please let me know if the schedule below works:

The next available vessel is:

CMA CGM VIVALDI V.530W

C/O 05/24

ETD 05/29

ETA 06/17

Thank You

Krystal Lee

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~~~~~

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From: John chen [<mailto:kumquattreeinc@gmail.com>]

Sent: Monday, May 20, 2013 11:18 AM

To: Krystal / Amoyline

Cc: Melissa / Amoy Line

Subject: Re:

Hi Krystal,

Can you tell me what is the cut off for this week?

John

On Mon, May 20, 2013 at 10:36 AM, Krystal / Amoyline <krystal@amoyline.com> wrote:

Hello John,

Please advise if you would like to confirm the booking for this week?

Please advise the quantity, thank you

Thank You

Krystal Lee

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Website: www.amoyline.com

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**From:** John chen [mailto:[kumquattreeinc@gmail.com](mailto:kumquattreeinc@gmail.com)]

**Sent:** Friday, May 17, 2013 3:56 PM

**To:** Krystal / Amoyline

**Subject:** Re:

Hi Krystal,

I only have picture of the packed pallet. Is this ok?

we only take photos for our buyer after we load.

On Fri, May 17, 2013 at 3:32 PM, Krystal / Amoyline <[krystal@amoyline.com](mailto:krystal@amoyline.com)> wrote:

Hello John,

Do you have any photos of the auto parts for export?

Please advise, thank you

Thank You

**Krystal Lee**

**Sales & Marketing**

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~~~~~

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From: John chen [mailto:kumquattreeinc@gmail.com]
Sent: Friday, May 17, 2013 3:21 PM
To: Krystal / Amoyline
Subject: Re:

Hi Krystal,

Those are new auto parts, please put country of origin as USA on the bill of lading.

thanks

On Fri, May 17, 2013 at 3:04 PM, Krystal / Amoyline <krystal@amoyline.com> wrote:

Hello John,

Thank you for the attached.

Please advise if these auto parts are new or used?

Please also advise the origin of the auto parts, thank you

Thank You

Krystal Lee

Sales & Marketing

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~~~~~  
Amoy Import & Export Co., Ltd.

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From: John chen [mailto:kumquattreeinc@gmail.com]
Sent: Friday, May 17, 2013 2:59 PM
To: Krystal / Amoyline
Cc: melissa@amoyline.com
Subject: Re:

Please see attachment.

On Fri, May 17, 2013 at 2:14 PM, Krystal / Amoyline <krystal@amoyline.com> wrote:

Hello John,

It was nice speaking with you.

Please confirm the specific name of the auto parts and origin also if they are new or used, thank you

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 6th, 2010!
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~~~~~

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Website: www.amoyline.com

~~~~~

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**From:** Krystal / Amoyline [mailto:krystal@amoyline.com]

**Sent:** Friday, May 17, 2013 1:55 PM

**To:** 'kumquattreeinc@gmail.com'

**Subject:** RE: export container to Tianjin

Hello John,

I hope all is well with you.

Please see the rate below:

From Oakland, California to Xingang

Carrier: Maersk

Ocean Freight: \$955 40'HQ

Transit time: 23 Days

Carrier:NYK

Ocean Freight:\$1356 40'HQ

Transit time:13 Days

**Thank You**

**Krystal Lee**

**Sales & Marketing**

Mandatory ISF begins January 26th, 2010!  
Please [click](#) here to download our ISF Form.

~~~~~  
Amoy International LLC

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Website: www.amoyline.com
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P *Save a tree.* Please don't print this e-mail unless it's really necessary! :)

**From:** John chen [<mailto:kumquattreeinc@gmail.com>]

**Sent:** Friday, May 17, 2013 3:31 PM  
**To:** [sales@amoyline.com](mailto:sales@amoyline.com)  
**Subject:** export container to tianjin

Dear export rate,

This is John from Kumquat Tree Inc, i saw your info on your website and i need to ship some containers from Oakland to Xingang.

Please quote me your rate for 40' and 40'HQ.

commodity: auto parts.

My phone number is 215-206-0449.

Thanks

John

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 26th, 2010!  
Please [click here](#) to download our ISF Form.

~~~~~

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14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: (626) 855-3077 Fax: (626) 855-3078

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

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Follow us on Twitter! Skype: krystal.amoyline

Website: www.amoyline.com

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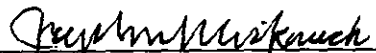


**CERTIFICATE OF SERVICE**

I hereby certify that a copy of the foregoing **OPPOSITION TO  
MOTION FOR PARTIAL SUMMARY JUDGMENT - DECLARATION OF  
MELISSA CHEN** was sent to the below-mentioned counsel via email on January  
19, 2015.

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ECONOCARIBE  
CONSOLIDATORS, INC.

  
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Joseph N. Mirkovich